

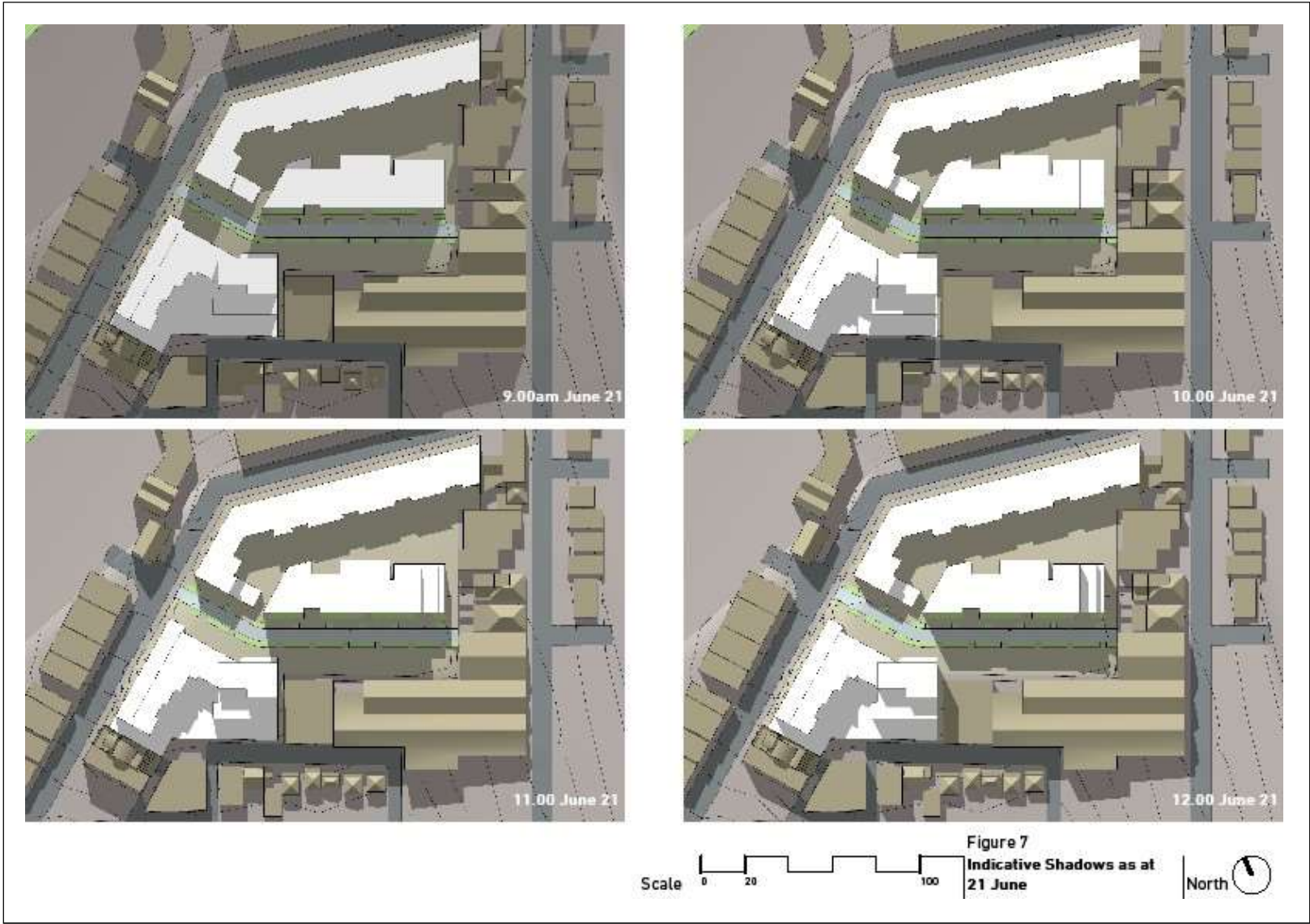


Figure G10: Indicative Shadows as at 21 June

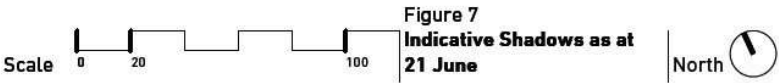
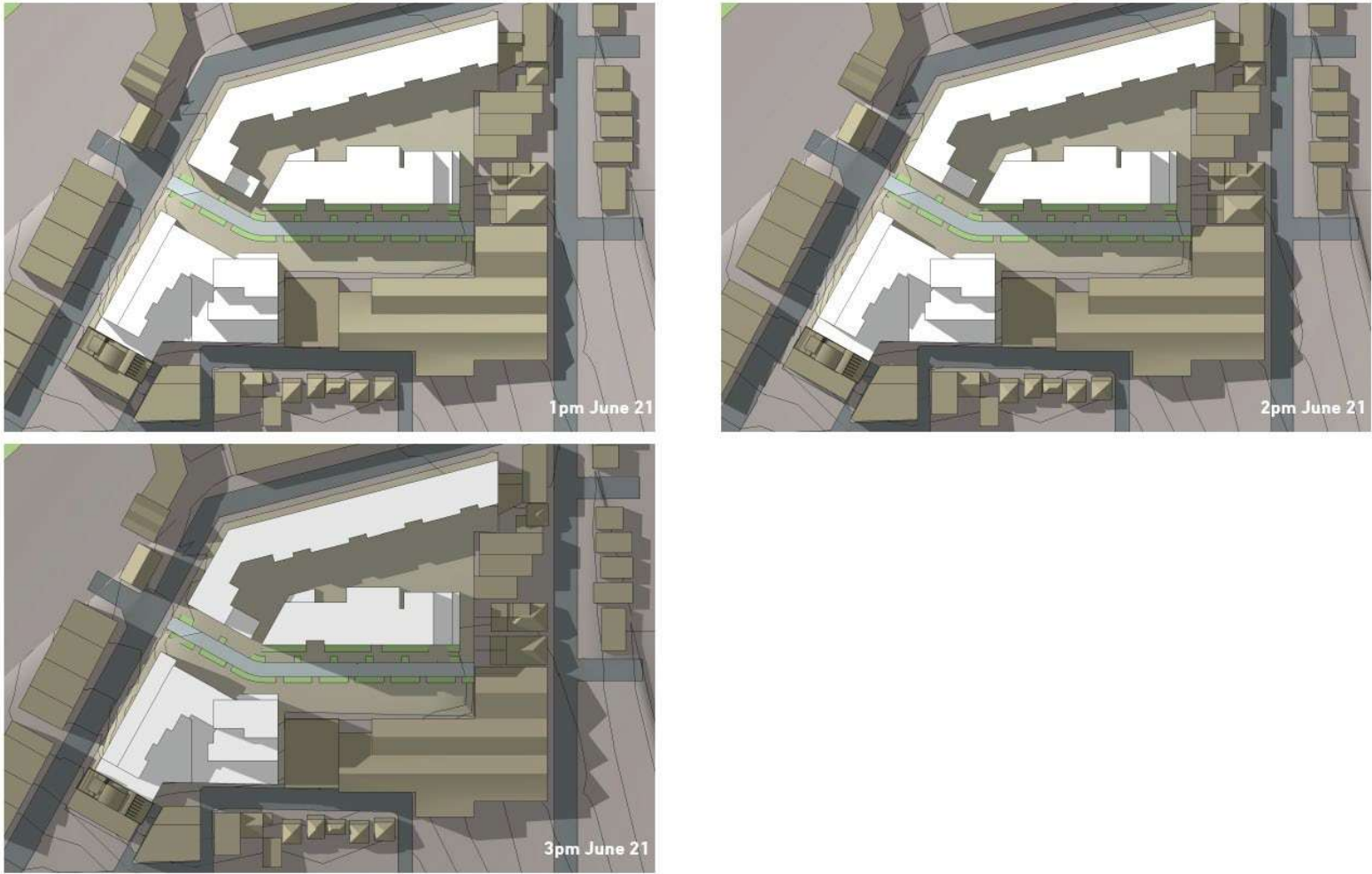


Figure G11: Indicative Shadows as at 21 June

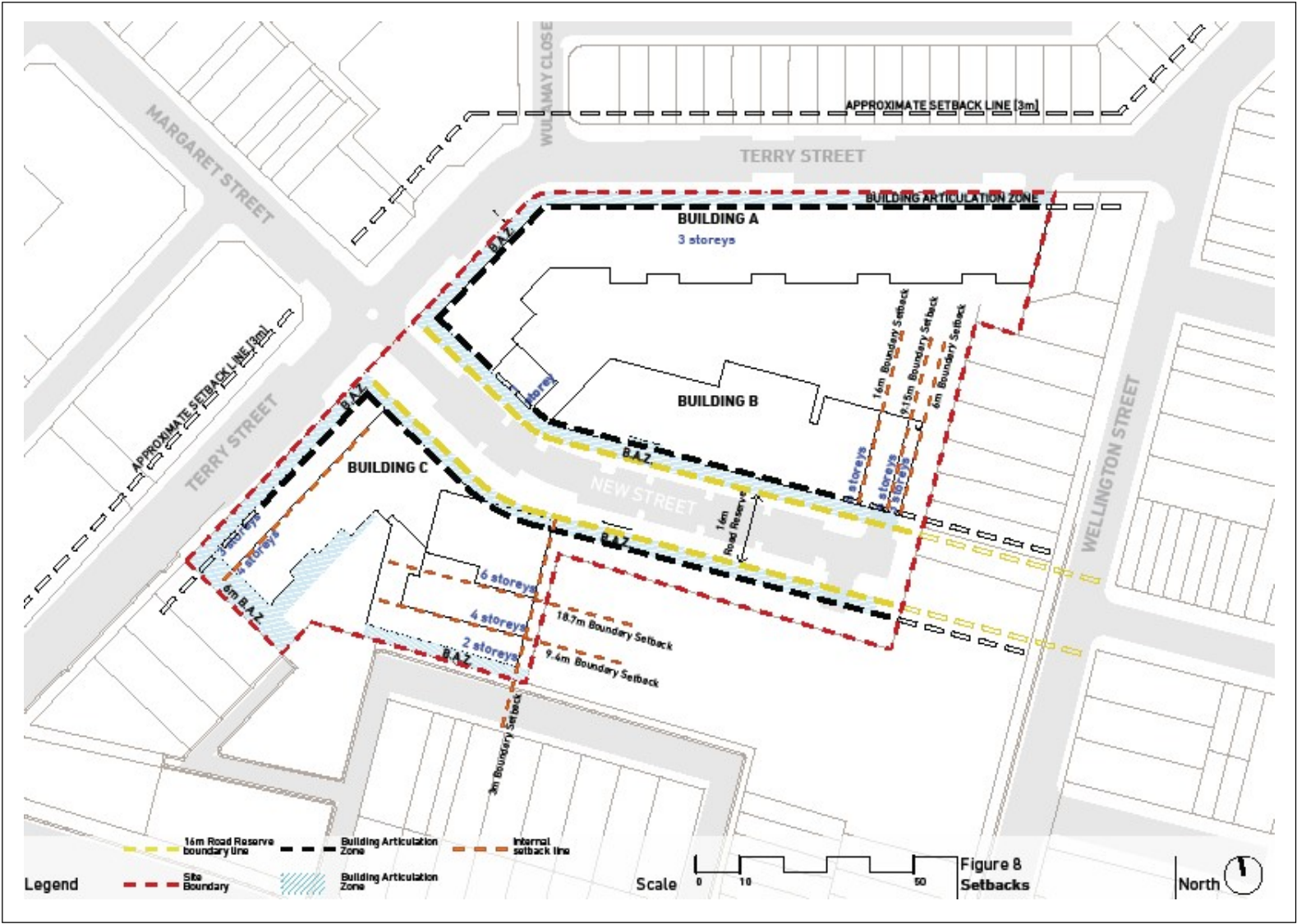


Figure G12: Setbacks

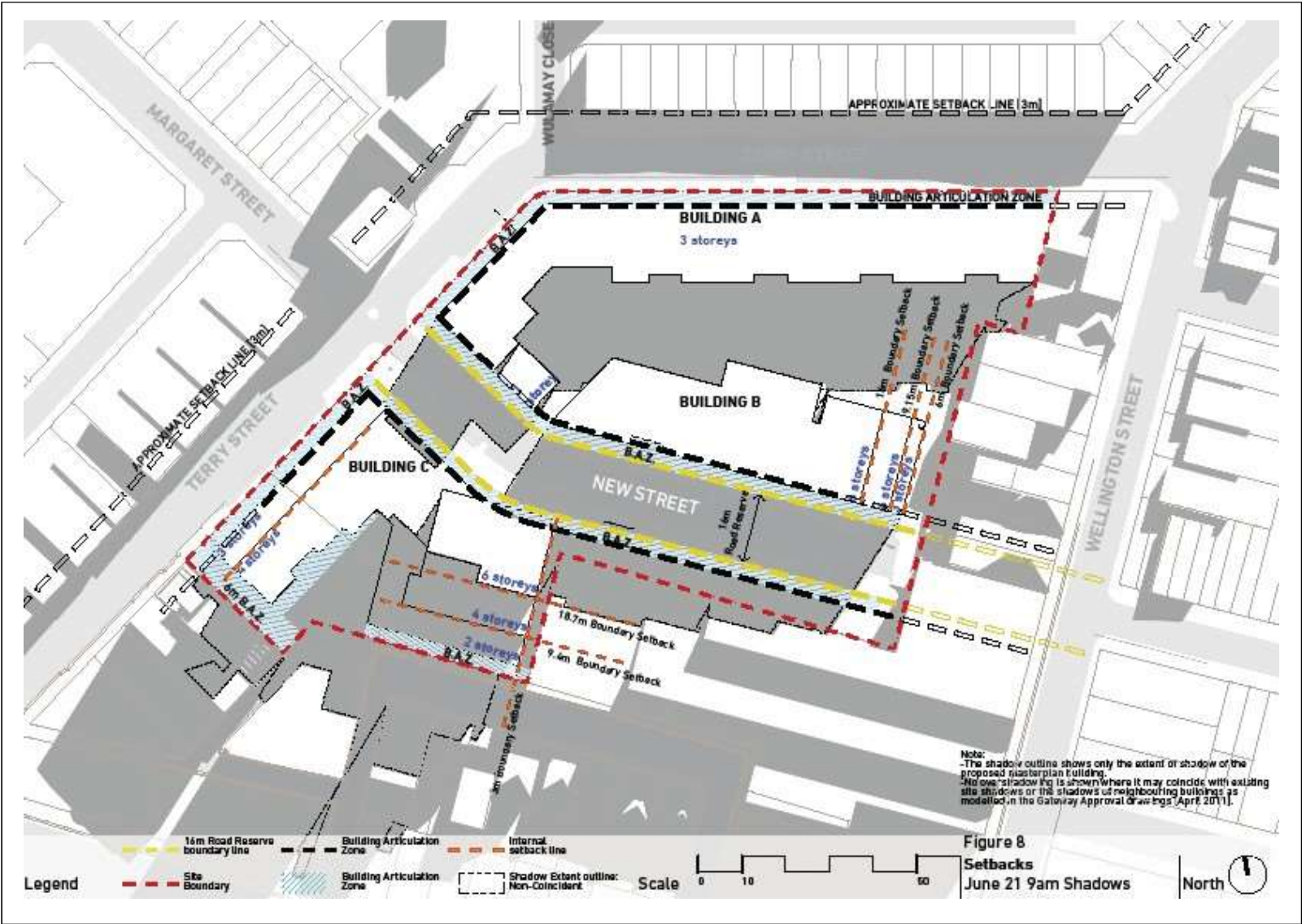
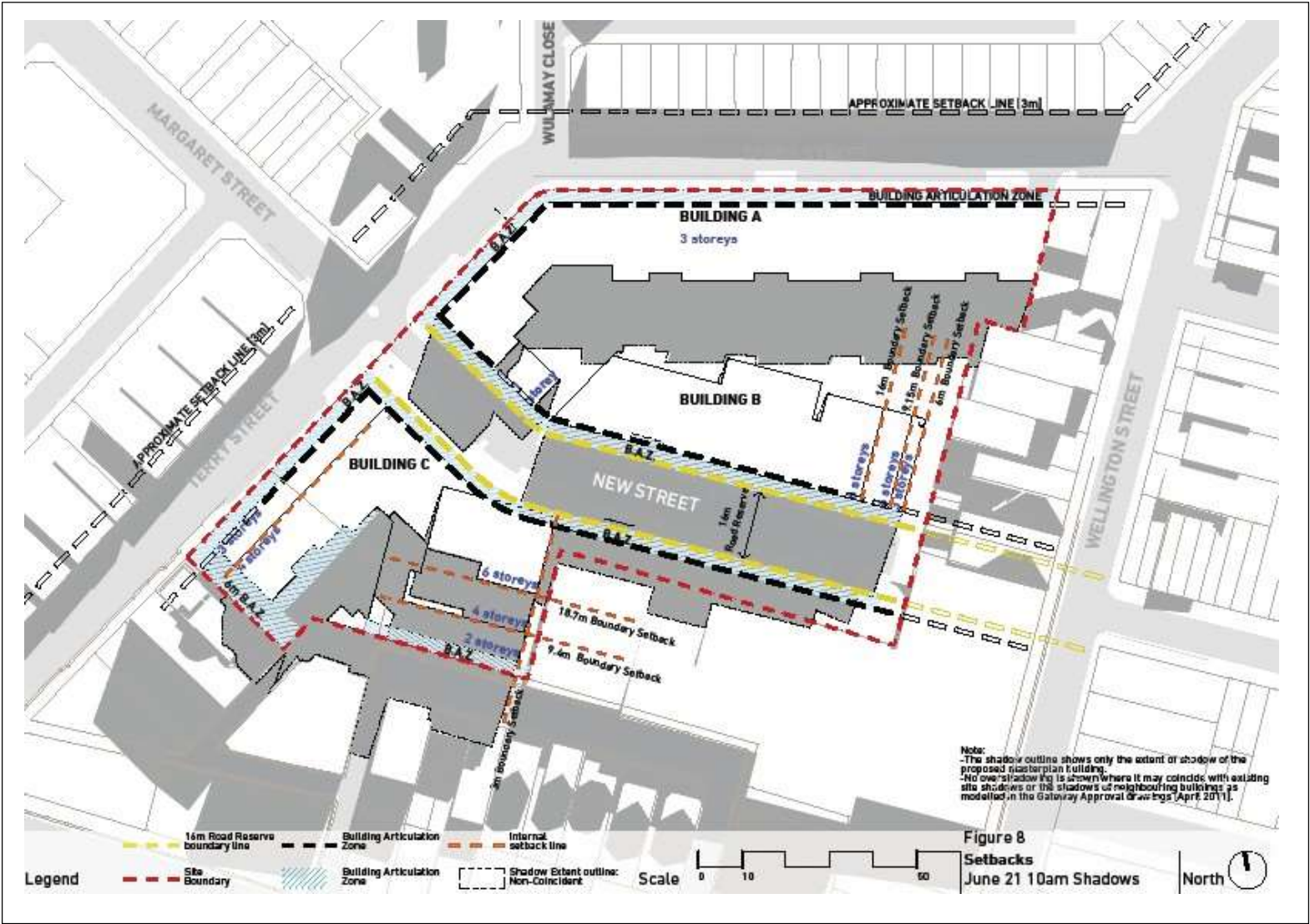
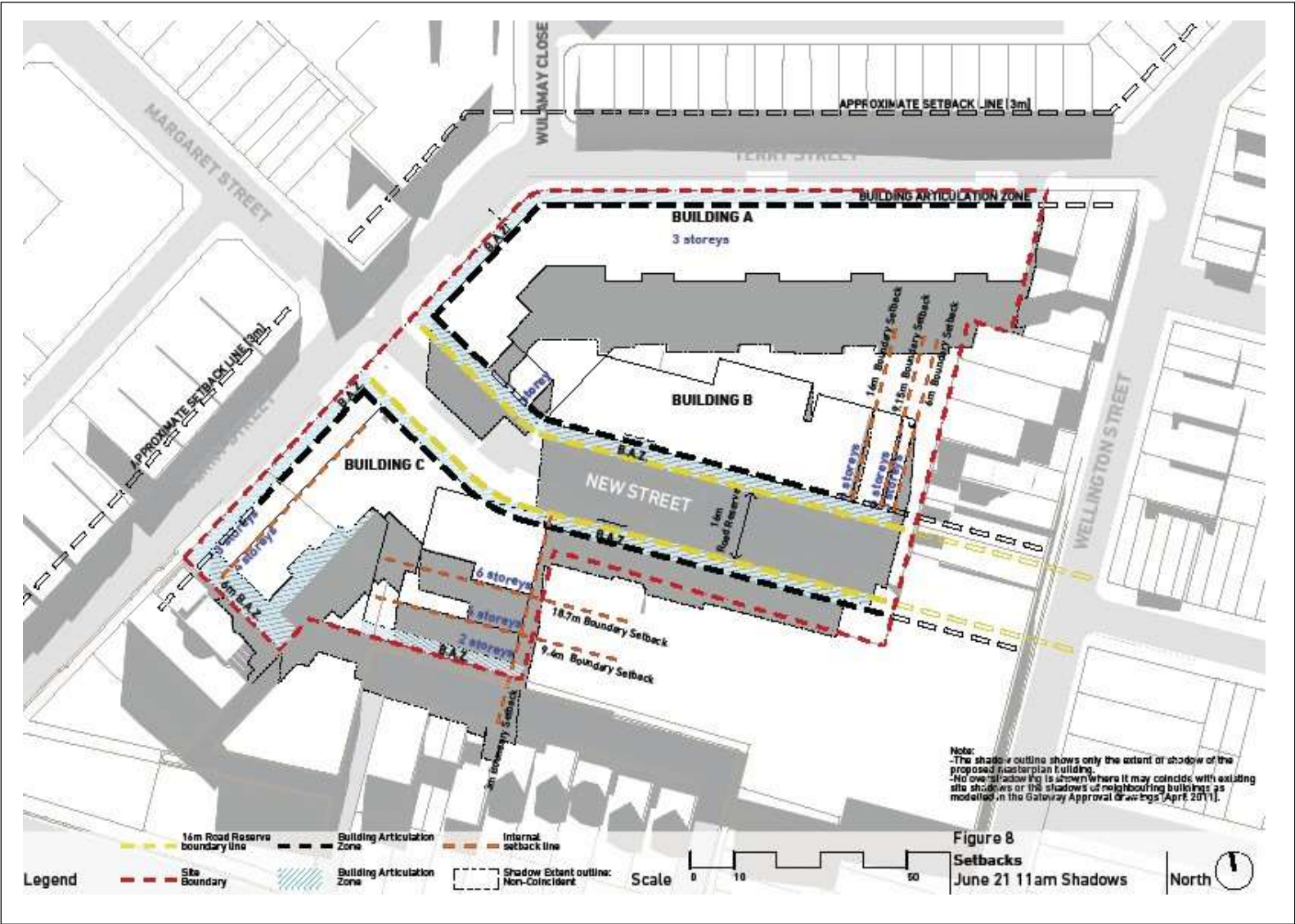


Figure G13: Setbacks June 21 9am Shadows





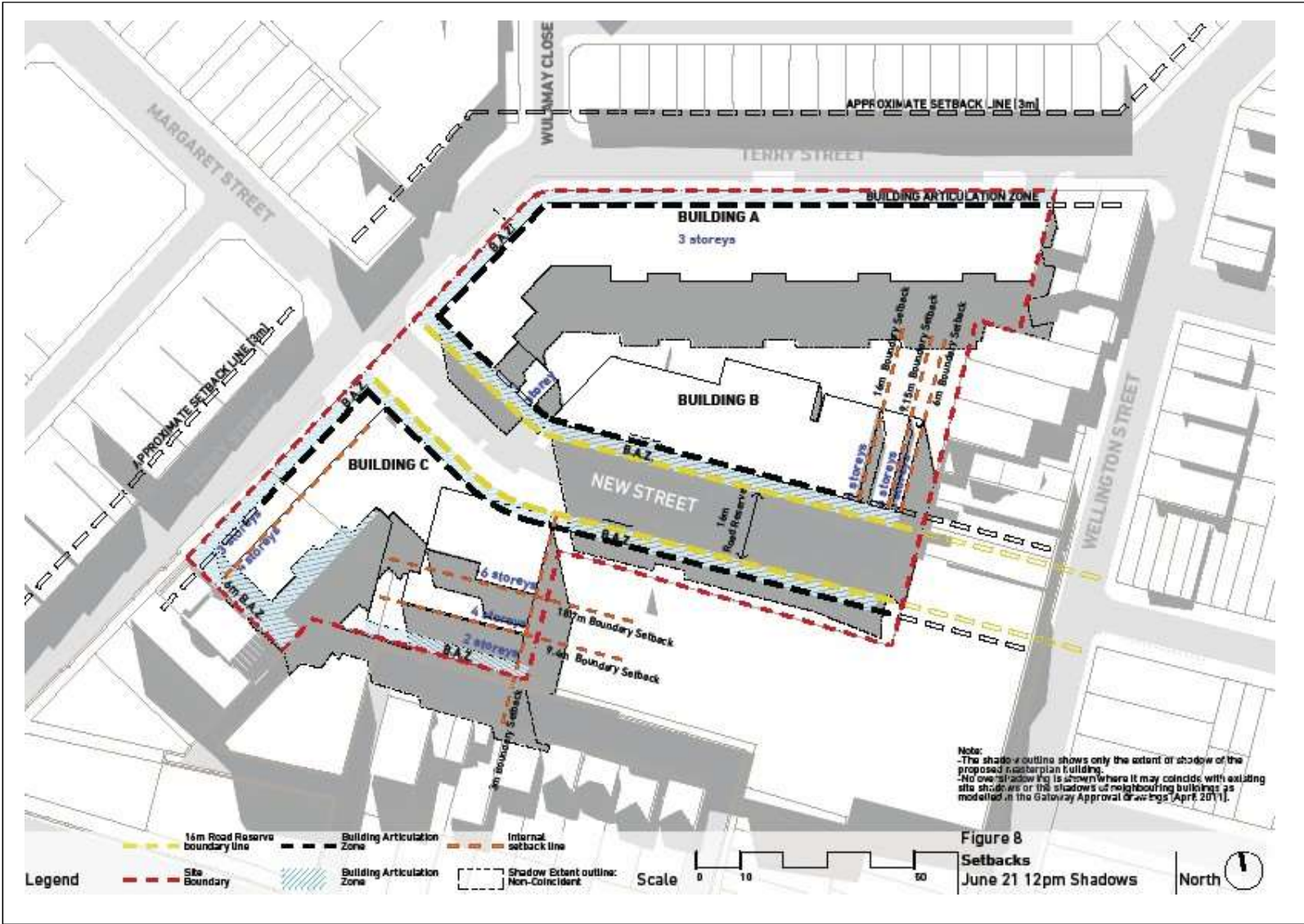


Figure G16: Setbacks June 21 12pm Shadows

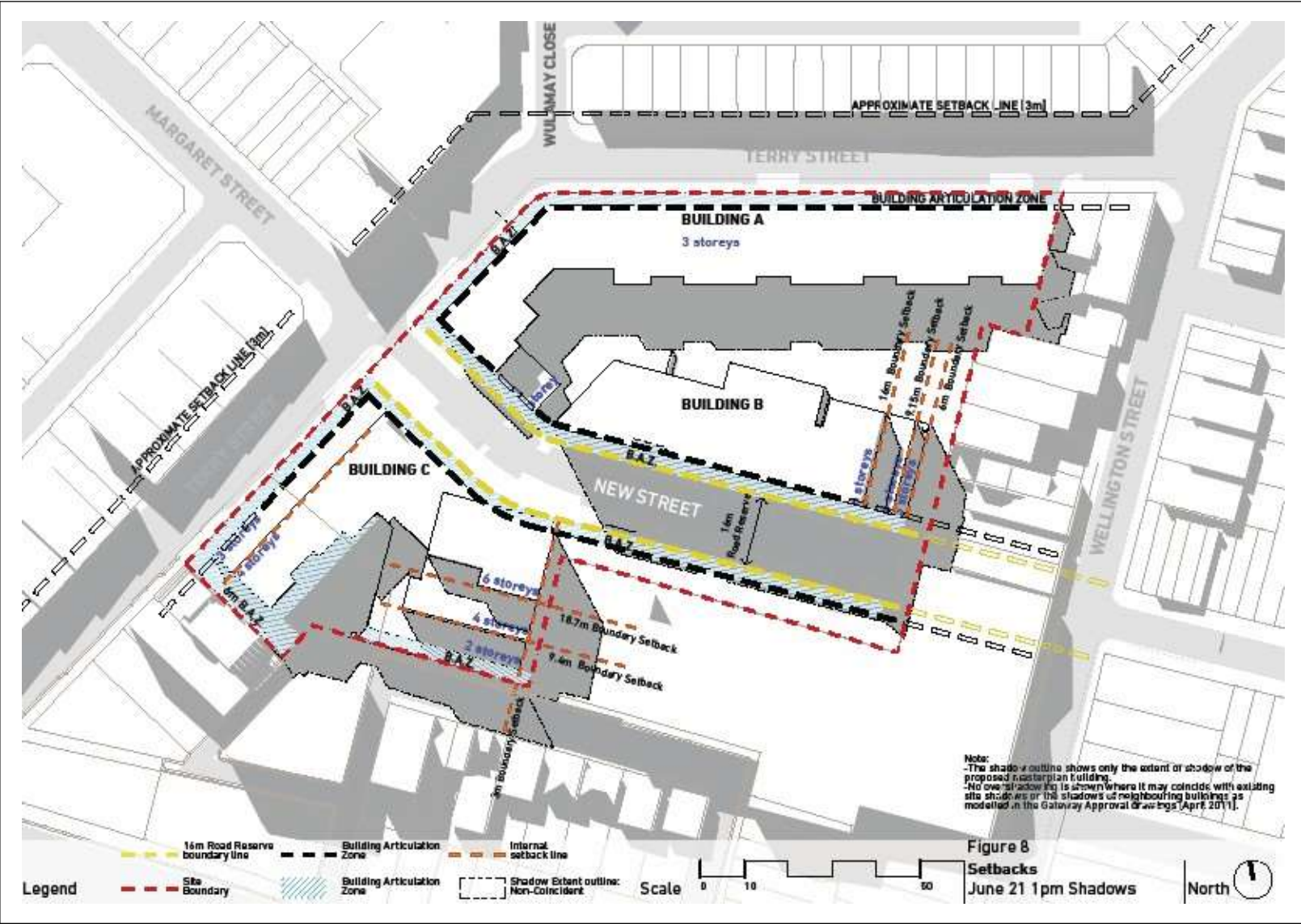


Figure G17: Setbacks 21 1pm Shadows

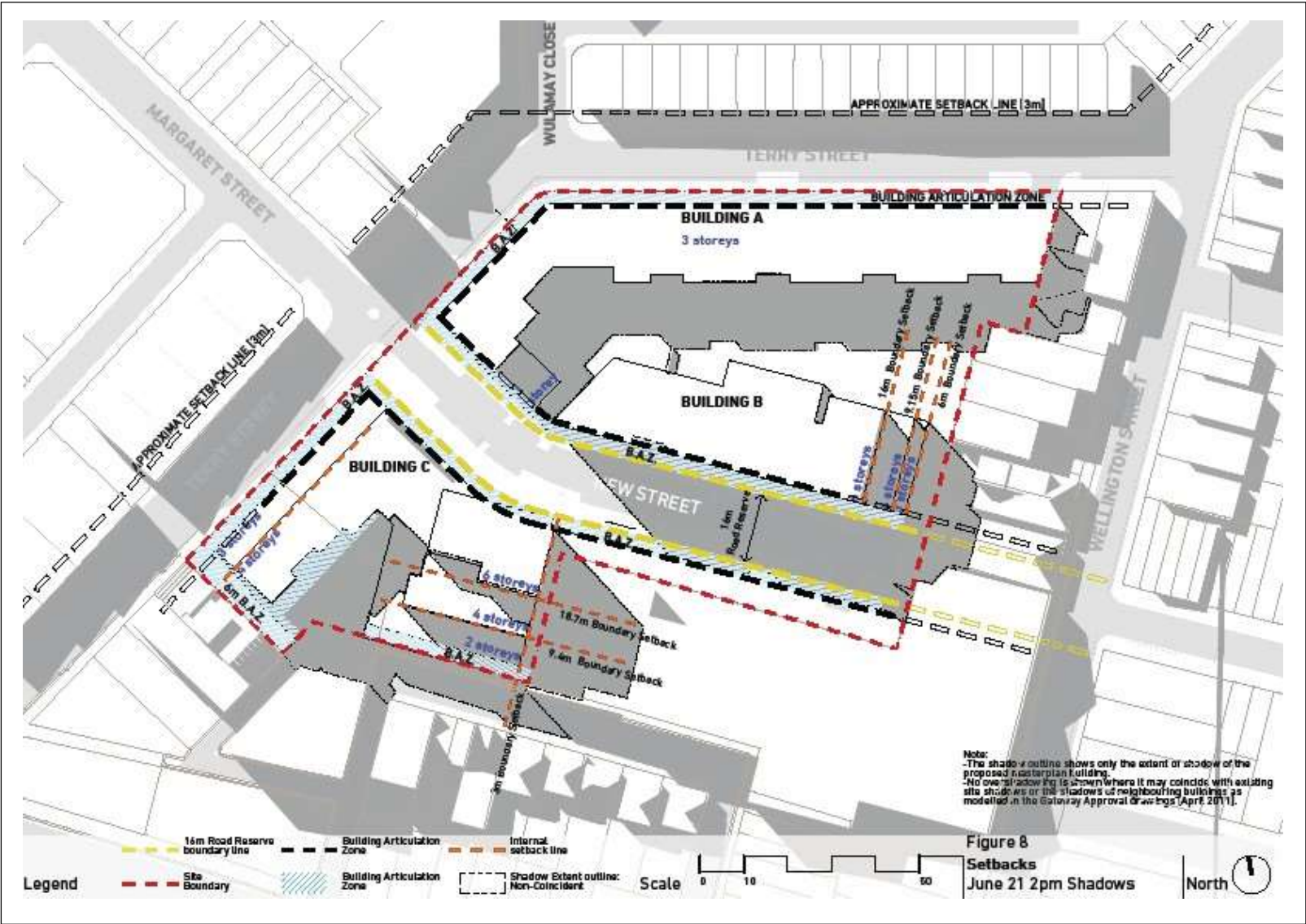
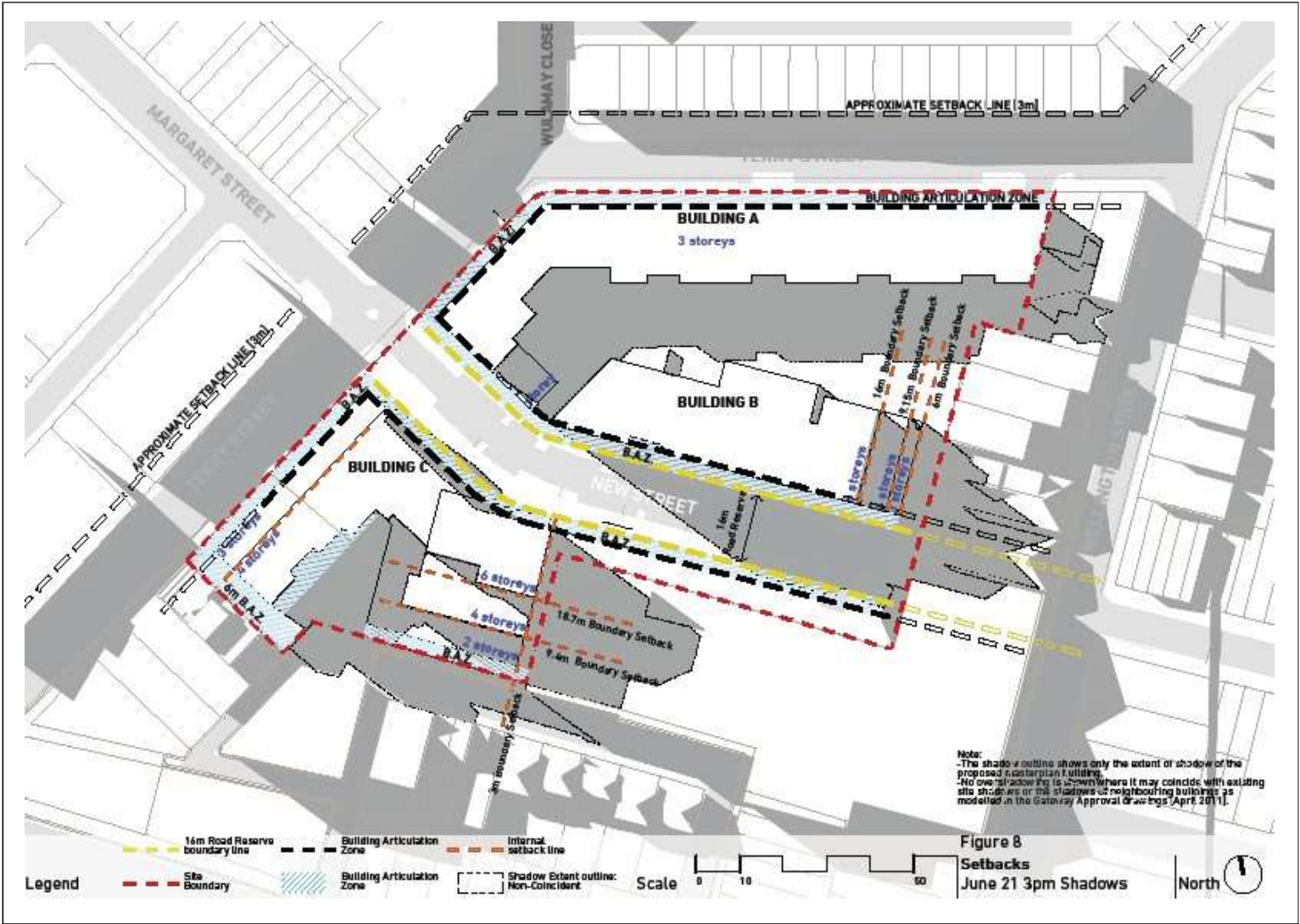


Figure G18: Setbacks June 21 2pm Shadows



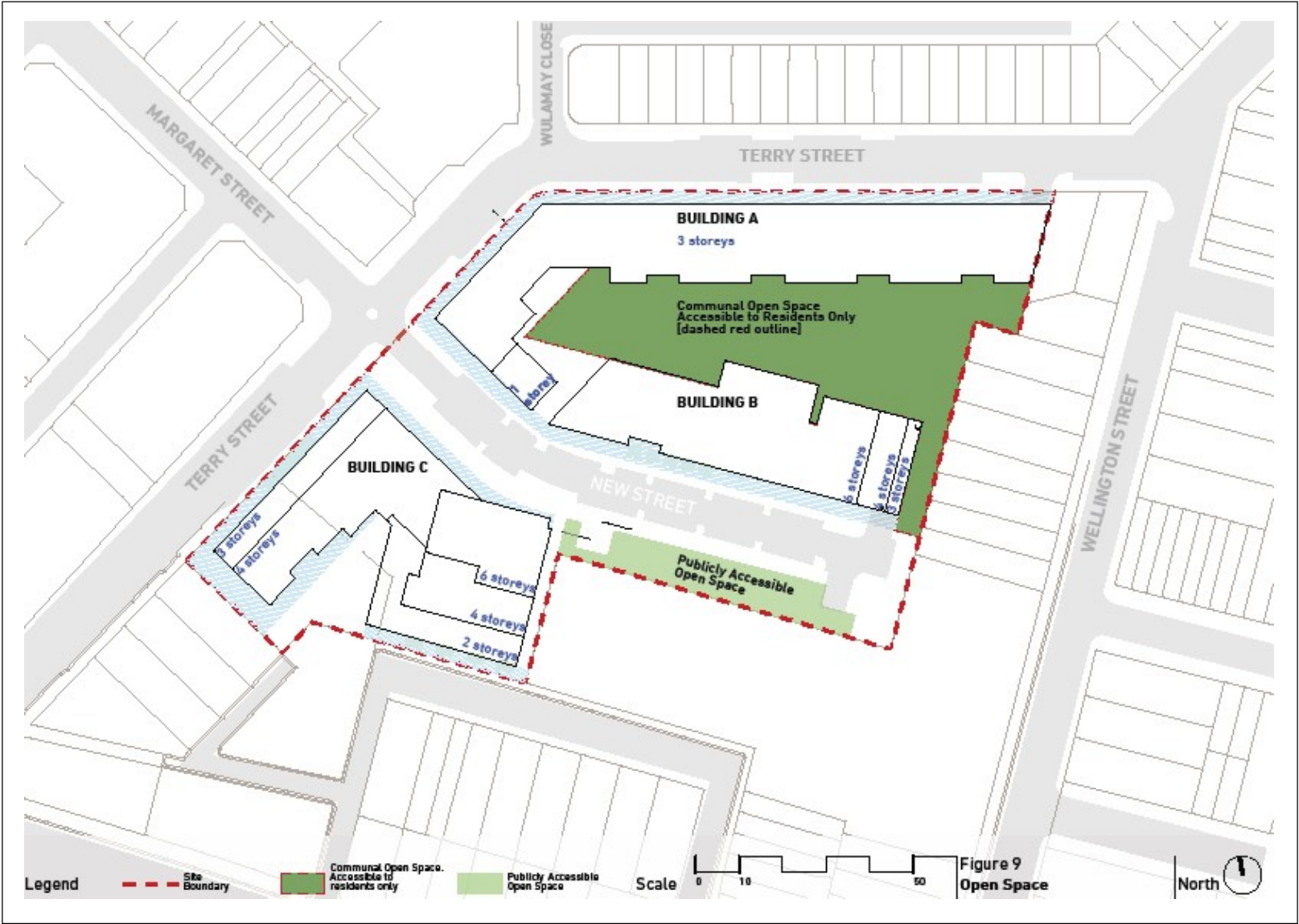


Figure G20: Open space

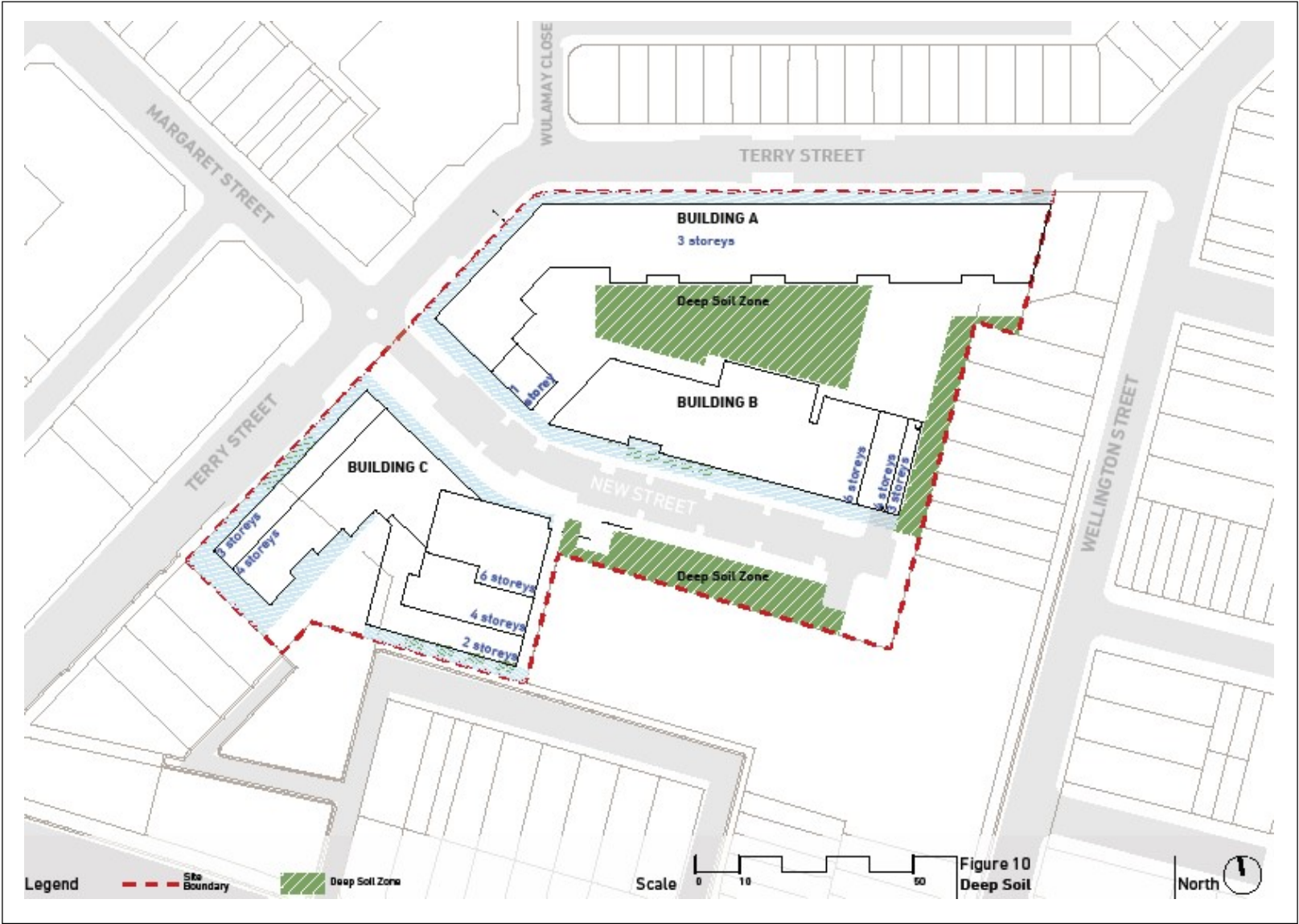


Figure G21: Deep Soil

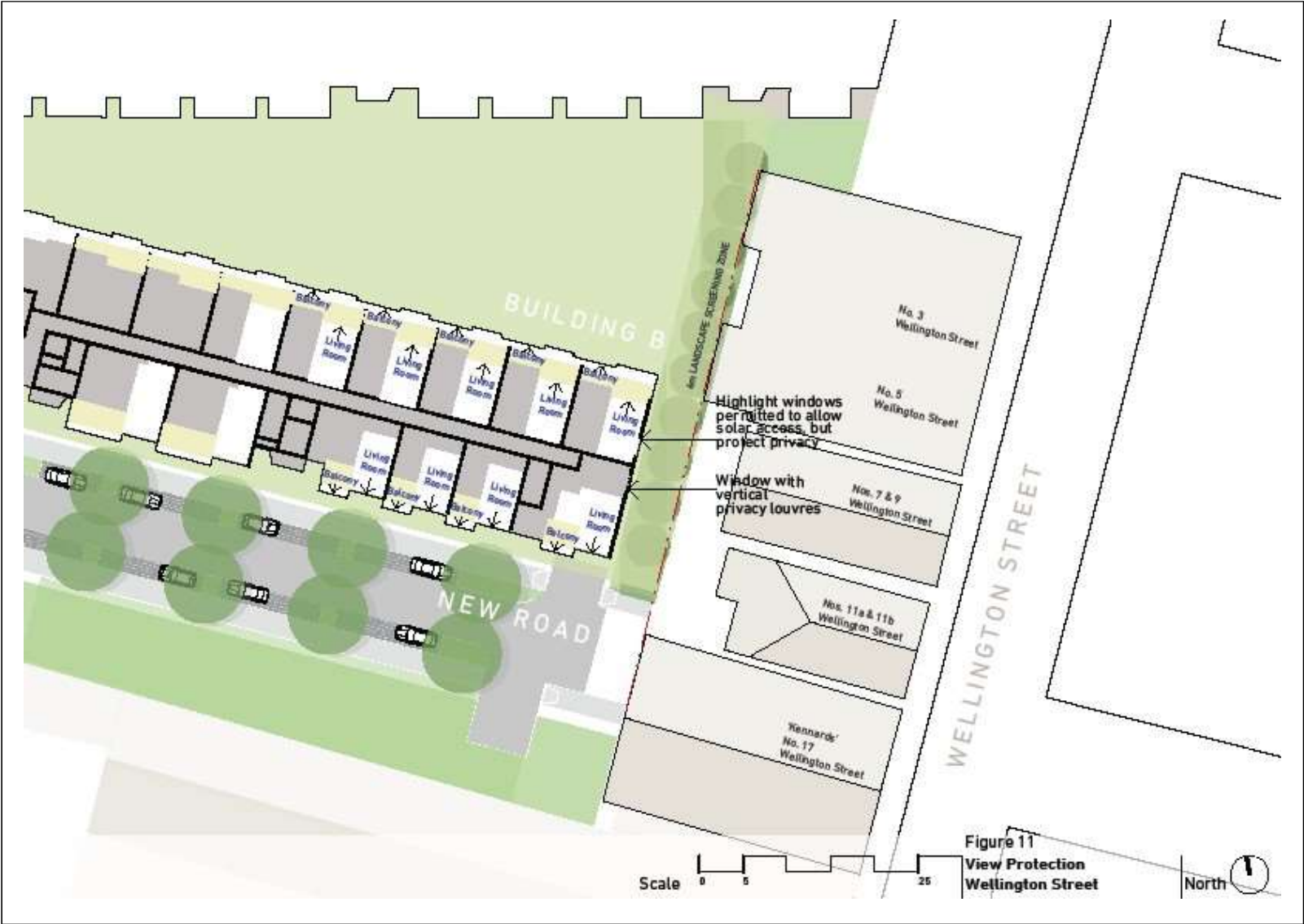


Figure G22: View Protection Wellington Street

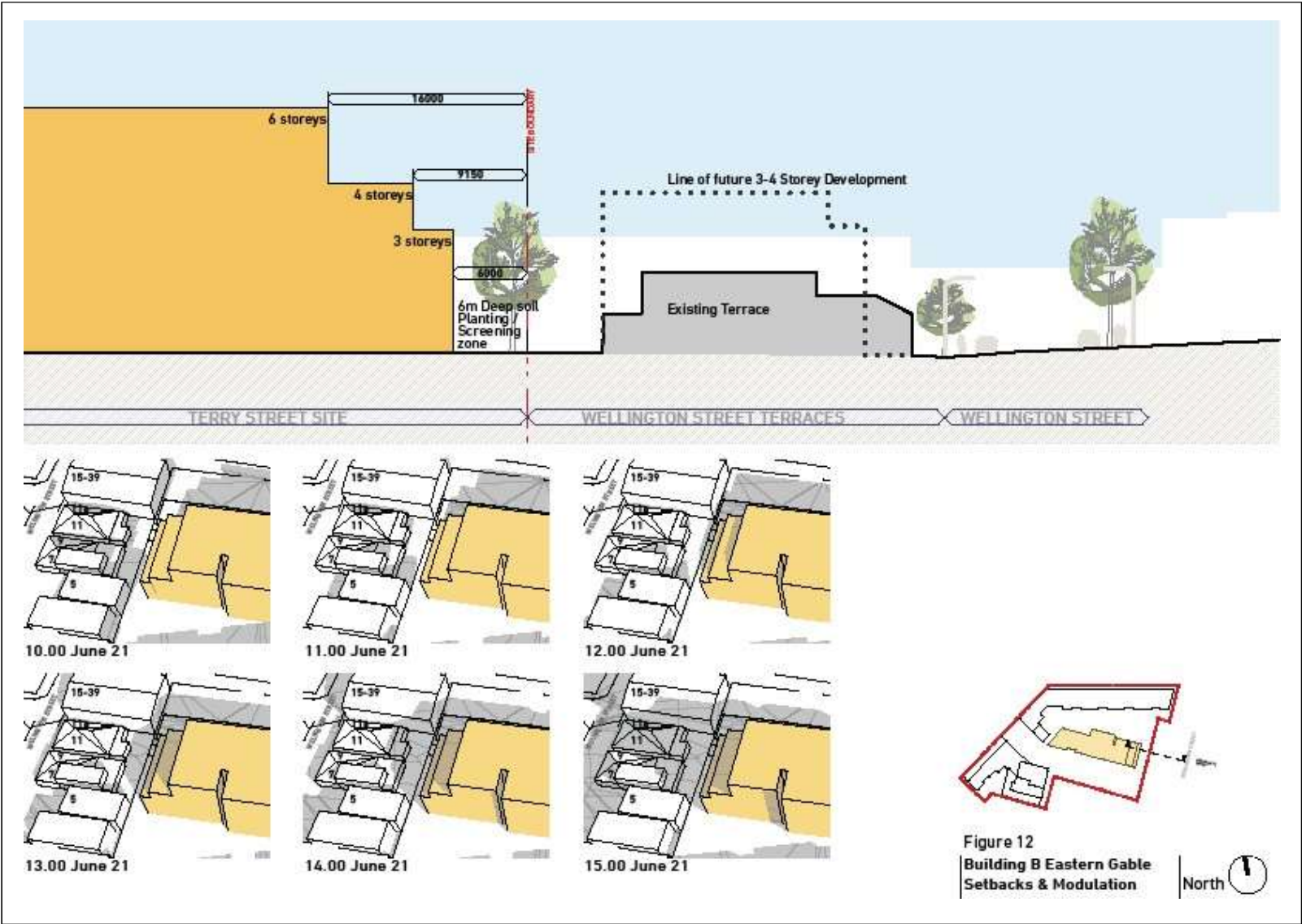


Figure G23: Building B Eastern Gable Setbacks and Modulation

SECTION 7 – 233 AND 233A JOHNSTON STREET ANNANDALE

Map Reference

Refer to Area 7 on the map in Figure G1 – Site Specific Areas.

G7.1 LAND TO WHICH THE SECTION APPLIES

This part applies to the land shown in Figure G24 – Site Location Plan, known as No. 233 and No. 233A Johnston Street, Annandale being Lots 1, 2 and 3 in Sec 13 DP 638 and Lots 58 and 67 to 78 DP 4844 respectively (herein referred to as the ‘site’).

No. 233 Johnston Street has an area of 1,148sqm and is located on the southern side of Rose Street in the block bounded by Johnston Street, Rose Street, View Street and Piper Street. No. 233A Johnston Street has an area of 1,945.5msqm, inclusive of Nos. 39, 41 and 43 Rose Streets and No. 170 View Street. No. 233A is located on the northern side of Rose Street and is in the block bounded by Johnston Street, The Crescent, View Street and Rose Street.

G7.2 BACKGROUND

In September 2010, in response to development proposals for both 233A and 233 Johnston Street, Council resolved to fund the preparation of development guidelines for the two properties. Council engaged the services of Architects Allen Jack + Cottier to work with the land owner and local community representatives to develop the development guidelines. The draft Development Guidelines were developed via a series of meetings and workshops with interested parties and the land owners.

A Public Information meeting on the draft Development Guidelines was held on 14 December 2011 and nearby landowners/occupiers were notified of the draft guidelines on 19 December 2011. The Draft Design Guidelines were reported to Council on 14 February 2012 where Council resolved to convert the draft Development Guidelines into Council’s Development Control Plan.

G7.3 OBJECTIVES

To provide objectives and controls to govern the redevelopment of the site so as to ensure that the development is compatible with the area, and meets the desired future character and needs of the community. In particular these objectives and controls aim to achieve:

- O1 A development that responds to the desired future scale and character of the streetscape and surrounding area.
- O2 A development that achieves architectural and urban design excellence.
- O3 The maintenance of adequate solar access and amenity to the surrounding residences.
- O4 The retention of items of heritage significance and other buildings of historic value.
- O5 The retention of significant views from the public domain, in particular the Winkworth Steps.
- O6 Improved amenity and enhancement of the overall appearance of Johnston Street, Rose Street and View Street.

G7.4 DESIRED FUTURE CHARACTER STATEMENT

C1 The new character of the site should:

- a. respond to the topography of the site, the character of Johnston Street, and adjacent residential uses;
- b. maintain the character of the area by ensuring new development is complementary in terms of its architectural style, built form and materials;
- c. promote building styles that enhance and contribute to the character and identity of the neighbourhood;
- d. protect and enhance the residential amenity of dwellings in and adjoining sites;
- e. protect and enhance existing Heritage Items and buildings of historical significance;
- f. preserve views over the City from the Winkworth Steps; and
- g. maintain the prevalence of mature regularly spaced street trees.

G7.5 PUBLIC DOMAIN

G7.5.1 Integration with existing road network

Objectives

- O1 To improve the amenity and enhance the overall appearance of Johnston Street, Rose Street and View Street.
- O2 Create a safe and secure public domain.

Controls

233A Johnston Street

- C1 Improved landscaping and paving is to be provided on Rose Street around the landing of the Winkworth Steps to improve pedestrian amenity and ameliorate conflict between pedestrians and vehicle movements.
- C2 Landscaping is to be designed to allow open views and clear passage for pedestrians and avoid dark hidden areas to maintain safety and security.

G7.5.2 Street Trees

Objectives

- O1 To improve the amenity and enhance the overall appearance of Johnston Street.

Controls

233A Johnston Street

- C1 Infill street tree planting is to be provided along Johnston Street to continue the existing avenue of Brushbox trees. Refer to Figure G25 – Street Tree Planting.

G7.5.3 Views

Objectives

- O1 To maintain significant views to the east of the western pylon of the Anzac Bridge, the Harbour Bridge and to the City from the top landing of the Winkworth Steps.

Controls

- C1 Development within that part of the site highlighted in red on the view cone on Figure G29: Views is to be limited to a maximum height of RL17.70.
- C2 A view analysis is to accompany any development application and is to identify any private views currently obtained from neighbouring residential properties.
- C3 Where views are potentially impacted the Development Application is to be accompanied by an analysis and justification having regard to *Tenacity Consulting v Warringah Council (2004) NSWLEC 140*.

G7.6 BUILT FORM AND DESIGN

G7.6.1 Building height and bulk

Objectives

- O1 Ensure future development responds to the desired future scale and character of the streetscape and surrounding area.
- O2 Minimise the visual impact of any additions to the existing commercial building at 233A Johnston Street from Johnston Street.
- O3 To ensure that the scale of development to 233 Johnston Street is broadly reflective of the existing industrial building.
- O4 To maintain adequate solar access and amenity to surrounding residences, the public domain and development within the site.

Controls

233A Johnston Street

- C1 Development along the Johnston Street frontage is to have a maximum wall height of 7m (i.e. two storeys) above footpath level, with the exception of the existing commercial building. This clause does not include the three areas where there is a maximum wall height of 5m as negotiated with Council and neighbours.
- C2 Additions to the existing commercial building are to be setback so as to minimise visibility from Johnston Street.
- C3 Additions to the existing commercial building are to be setback so as to maintain existing solar access to the adjoining View Street properties.
- C4 Development of the site is to comply with the building envelopes as shown in Figures G31 – G36, which reflect the 32° (at 291 degrees 50 minutes true north) shadow angle taken from the rear boundary of the View Street properties at a height of RL10.71.
- C5 Development on 170 View Street is to respect the building heights and roof forms of the adjoining View Street properties and is to have a maximum ridge height of RL 14.5.

SITE SPECIFIC CONTROLS

233 Johnston Street

- C6 Development along the Johnston Street frontage is to have a maximum wall height of 4m and maximum building height of 7.5m (i.e. two storeys) above Johnston Street, except for the portion of the site adjoining the southern boundary where development is to have a maximum wall height of 4m (i.e. one storey plus attic) above Johnston Street (refer to Figures G37-G39).
- C7 Any second storey element to the Johnston Street / Rose Street corner is to be setback
- C8 Solar access is to be maintained to the top half of the second window from Johnston Street in the northern elevation of 231 Johnston Street in mid-winter.
- C9 Building envelopes are to be in accordance with Figures G37-G39.
- C10 The top of the southern boundary wall adjacent to No. 231 Johnston Street is to be a maximum of RL18.10 to reduce the overshadowing to the rear yard of No. 231 Johnston Street

G7.6.2 Building setbacks and articulation

Objectives

- O1 Maintain a desired level of solar access and amenity to surrounding residences, the public domain and development within the site.
- O2 To ensure that the building mass and articulation along Johnson Street reflects the articulation and character of the street, including breaks between buildings.

Controls

233A Johnston Street

- C1 The Johnston Street frontage shall have a minimum setback of 1m at street level from the existing heritage wall. A zero setback will be permitted 2.4m above street level.
- C2 A minimum setback of 1m is to be provided from the heritage listed sandstone wall below Johnston Street level.
- C3 1.5m gaps are to be provided in the Johnston Street wall in accordance with Figure G37: Building articulation.
- C4 Rose and View Street frontages are to respect existing front setbacks on adjoining properties and the street alignment generally in accordance with Figure G38: Building setbacks.
- C5 Additions to the existing commercial building are to be sufficiently setback to minimise visibility from Johnston Street and maintain the existing solar access to the View Street properties generally in accordance with Figure G38: Building setbacks.
- C6 Additions to the existing commercial building are to be setback a minimum of 900mm from the northern boundary to No. 235, with the exception of the lift overrun and fire stair which may encroach on this setback, subject to no measurable additional adverse impacts on No.235.
- C7 A minimum 3 metres rear setback is to be provided at ground floor level to the rear boundary of the View Street properties and shown in Figure G38: Building setbacks for any new development.
- C8 The rear setback of development on 170 View Street is to align with the rear alignment of the adjoining View Street properties to the north (No. 172).

SITE SPECIFIC CONTROLS

- C9 Side setbacks of No.170 View Street are to be as shown in Figure G38: Building Setbacks. Position 1.1mx 6m slot in plan.
- C10 A side setback 1.1m wide by 6.0m long is to be provided adjacent to the windows of No. 172 View Street.
- C11 Maintain a gap of a minimum dimension of 1.5m between the southern façade of the existing commercial building at 233A Johnston Street and any new building.
- C12 Maintain a minimum 1.5m wide gap between developments, either along the alignment of the existing drainage reserve or within a 10m wide zone north of the drainage reserve as shown on Figure G37: Building articulation.

233 Johnston Street

- C13 Setbacks are to be in accordance with Figure G38: Building setbacks.
- C14 The Johnston Street frontage shall have a minimum setback of 1m at street level from the existing heritage wall and 2.4m above street level.

G7.6.3 Building separation

Objectives

- O1 To ensure that buildings have adequate separation to minimise visual bulk and to ensure adequate amenity within the site.

Controls

233A Johnston Street

- C1 Buildings should be located within the envelopes shown in Figures G30 to G32 to ensure appropriate separation from the adjoining properties.

233 Johnston Street

- C2 Buildings should be located within the envelopes shown in Figures G33 to G34 to ensure appropriate separation from the adjoining properties.

G7.6.4 Building materials and finishes

Objectives

- O1 To ensure that buildings have a high quality appearance and have regard to the character of the surrounding area.

Controls

- C1 Building and landscape materials are to be fit for purpose and reflect the Desired Future Character Statement, be appropriate for climatic conditions and be of high specification to ensure long term quality and sustainability of the development.
- C2 Materials to be used may include:
- a. heavy materials for the base structure: concrete, masonry, render;
 - b. lightweight materials for the top of the building to allow flexibility in roof form i.e. steel, aluminium and other metallic materials; and

- c. screening elements: to provide enhanced privacy to the occupants of the development as well as to adjoining residential properties.

G7.6.5 Design of building elements

Objectives

- O1 To ensure that fronts, backs and tops of buildings have a high quality appearance and have regard to the character of the surrounding area.

Controls

- C1 Buildings are to be designed in accordance with the Desired Future Character Statement.
- C2 The design of the buildings should be of contemporary design.
- C3 Buildings and landscape elements, including balconies, entries, rooflines and screening are to contribute to the character of the streetscape, enhance opportunities for visual supervision of the public domain, reduce overlooking, enhance residential amenity and make a positive contribution to place identity.

G7.6.6 Disability access

Objectives

- O1 To ensure that access to the development and its surrounds is maximised for people of all abilities and needs.

Controls

- C1 The provisions of Part C1.10 - Equity of Access and Mobility within this Plan apply.

G7.6.7 Signage

Objectives

- O1 To allow the existing commercial building to provide appropriate signage while ensuring that such signage does not result in visual clutter and is compatible with its context.

Controls

- C1 All signage is to be located on those parts of the building used for non-residential purposes.
- C2 Signage must be for non-residential purposes and be in accordance with controls contained in Part C1.15 Signs and Outdoor Advertising of this Plan.

G7.7 RESIDENTIAL AMENITY

G7.7.1 Solar Access

Objectives

- O1 To optimise solar access to habitable rooms and private open space of new housing to improve amenity and energy efficiency.

Controls

- C1 Living rooms and private open spaces for at least 70% of residential units should receive a minimum of 2 hours of direct sunlight between 9am and 3pm in mid-winter in accordance with

SITE SPECIFIC CONTROLS

the Residential Flat Design Code (RFDC) which forms part of the *State Environmental Planning Policy No 65 – Design Quality of Residential Flat Buildings (SEPP 65)*.

G7.7.2 Cross ventilation

Objectives

- O1 To ensure that dwellings have good access to fresh air and that energy efficiency is maximised.

Controls

- C1 60% of residential units should be naturally cross ventilated in accordance with the Residential Flat Design Code (RFDC) which forms part of *State Environmental Planning Policy No 65 – Design Quality of Residential Flat Buildings (SEPP 65)*.

G7.7.3 Open Space

Objectives

- O1 To provide residents with areas of private open space of a size and shape that meets the users requirements for relaxation and recreation.

Controls

- C1 Balconies and terraces should be :
- a. designed as an integral part of the building's architecture;
 - b. a minimum width of 2m;
 - c. located off the main internal living area of the dwelling;
 - d. not project beyond the street alignment; and
 - e. preferably face north or towards the view.
- C2 All residential units should have a primary balcony with a minimum depth of 2 metres in accordance with the Residential Flat Design Code (RFDC) which forms part of *State Environmental Planning Policy No 65 – Design Quality of Residential Flat Buildings (SEPP 65)*.

G7.7.4 Visual Privacy

Objectives

- O1 To protect the visual privacy of adjoining dwellings by minimising direct overlooking of principal living areas and private open space.
- O2 To provide landscaping on built structures that maintains the privacy of the neighbouring properties.

Controls

- C1 All development is to comply with the provisions contained in Part C3.11 Visual Privacy of this Plan.

SITE SPECIFIC CONTROLS

- C2 Planter boxes (of sufficient soil depth and width to accommodate substantial planting), or similar privacy measures, are to be provided on all east facing balconies of 233A Johnston Street to maintain the privacy of the neighbouring View Street properties.

G7.7.5 Deep Soil Landscape Area

Objectives

- O1 To improve the amenity of the existing residences and those of the new development by providing a deep soil landscaped area between properties.
- O2 To provide access to the sewer line below.

Controls

233A Johnston Street

- C1 A minimum of 3 metres wide, deep soil landscaped zone is to be provided along the rear boundary of the site adjacent to the boundary to No's 162-172 View Street in accordance with Figure G39: Deep soil landscape area.
- C2 The deep soil landscaped zone is to be suitably landscaped, including the planting of suitable canopy trees that restrict overshadowing of No. 162-172 View Street.
- C3 A Landscape plan is to be submitted with the development application.
- C4 A Landscape Plan of Management / Maintenance Plan shall be submitted with the application.

233 Johnston Street

- C5 A Landscape plan is to be submitted with the development application for any on podium landscaping.

G7.8 PARKING AND ACCESS

G7.8.1 Parking rates

Objectives

- O1 To provide an appropriate balance between encouraging use of public transport and increasing the demand for on-street parking in the area.

Controls

- C1 Car parking is to be provided in accordance with Part C1.11 Parking of this Plan.
- C2 All bicycle parking is to comply with the provisions contained in Part C1.11 Parking of this Plan.

G7.8.2 Vehicular access

Objectives

- O1 To ensure that building vehicular access and egress points are best located to reduce potential for conflict.

Controls

- C1 No vehicular access to 233 + 233A Johnston Street from Johnston Street.

C2 All vehicular access is to be via the Rose Street frontage of the site.

C3 All building vehicular access and egress points are subject to final Council approval.

G7.9 ENVIRONMENTAL PERFORMANCE

G7.9.1 Sustainability rating

Objectives

- O1 To ensure that a high level of sustainability is achieved by requiring a higher standard to be achieved than would typically apply to such development.

Controls

- C1 The environmental performance and any development of the site must consider the following matters:
- a. 'energy': demand reduction, use efficiency, and generation;
 - b. 'water': reduction in potable water use, water reuse and use of other water sources;
 - c. 'management': sustainable development principles throughout the life of the project;
 - d. 'indoor air quality': enhanced building performance and wellbeing of occupants;
 - e. 'transport': reduction in demand for private car usage and encouraging alternative forms of transportation;
 - f. 'building materials': reduction in resource consumption through material selection, reuse and management practices;
 - g. 'land use and ecology': reduction in the impact on the ecosystem;
 - h. 'emissions': mitigating point source pollution from buildings and building services to the atmosphere, watercourse, and local ecosystems; and
 - i. 'innovation': pursuing innovation that fosters the industry's transition to a more sustainable building as specified by the Green Star Rating System.

G7.9.2 Drainage and Water Management

Objectives

- O1 To integrate water sensitive urban design into the development to reduce peak stormwater flows downstream, minimise transport of pollutants into waterways and maximise water recycling

Controls

- C1 Stormwater Drainage System must be designed to comply with Part E Water of this Development Control Plan.
- C2 Any development of the site must also consider the following matters:
- a. 'water': reduction in potable water use, water reuse and use of other water sources;
 - b. 'land use and ecology': reduction in the impact on the ecosystem;

- c. 'emissions': mitigating point source pollution from buildings and building services to the atmosphere, watercourse and local ecosystems; and
- d. 'innovation': pursuing innovation that fosters the industry's transition to a more sustainable building as specified by the Green Star Rating System.

G7.10 WASTE AND RECYCLING MATERIALS STORAGE AND DISPOSAL

G7.10.1 Waste and recyclable materials temporary storage and disposal facilities

Objectives

- O1 To ensure that adequate on-site provision is made for the temporary storage and disposal of waste and recyclable materials.
- O2 To ensure that opportunities to maximise source separation and recovery of recyclables are integrated into the development.
- O3 To minimise risk to health and safety associated with handling and disposal of waste and recycled material and the potential for adverse environmental impacts associated with waste management.

Controls

- C1 Facilities required for the management, temporary storage, loading and unloading of waste and recyclable materials are to be provided wholly within the development.
- C2 Waste management and storage areas are to be located, designed and constructed to ensure integrated into the streetscape.
- C3 A completed Site Waste Minimisation and Management Plan (SWMMP) must accompany any development application.

Note: Refer Part D2 – Resource Recovery and Waste Management and Appendix D.1 Site Waste Minimisation and Management Plan Template of this Development Control Plan for further information.



Figure G24: Site Location Plan

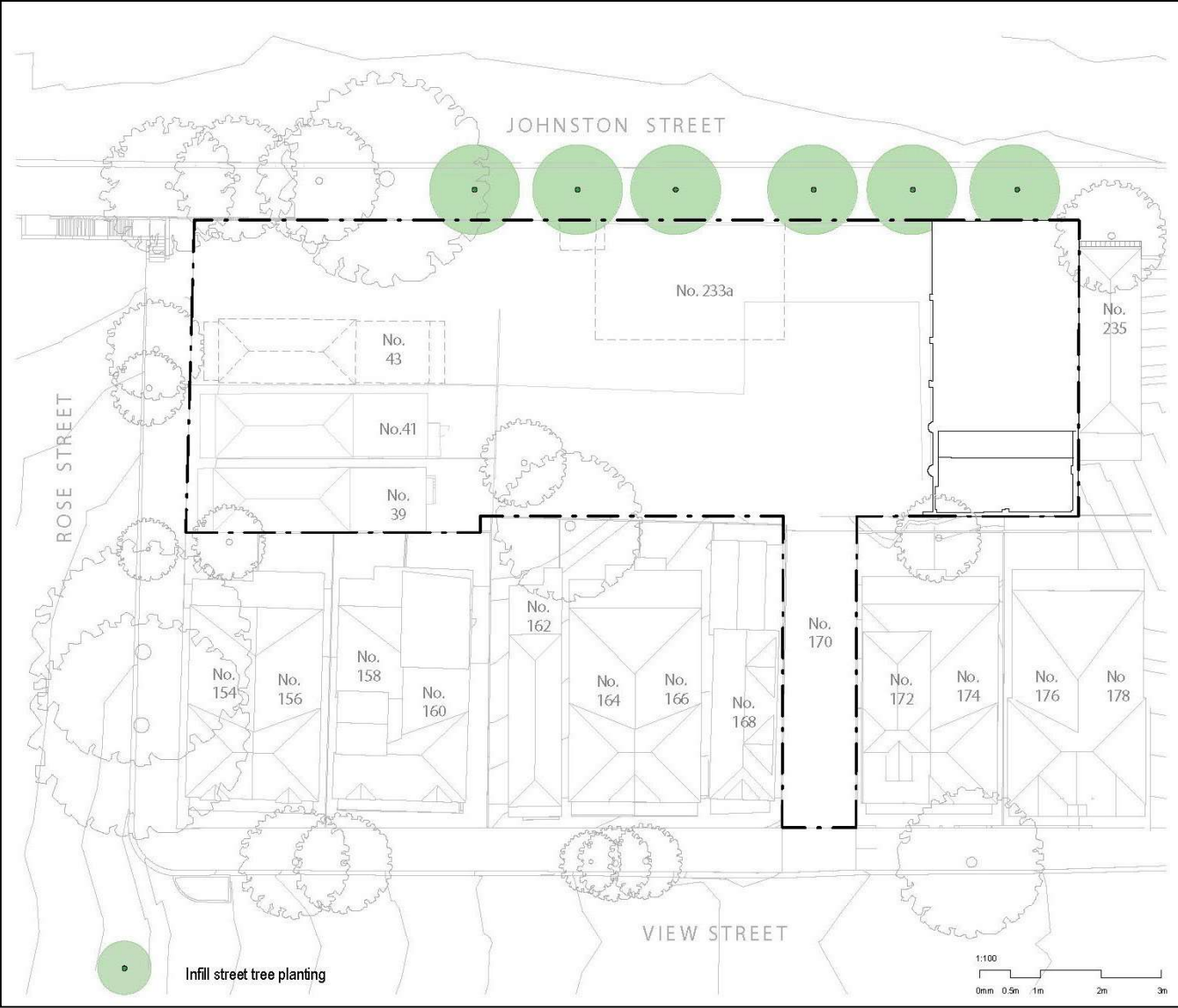


Figure G25: Street Tree Planting

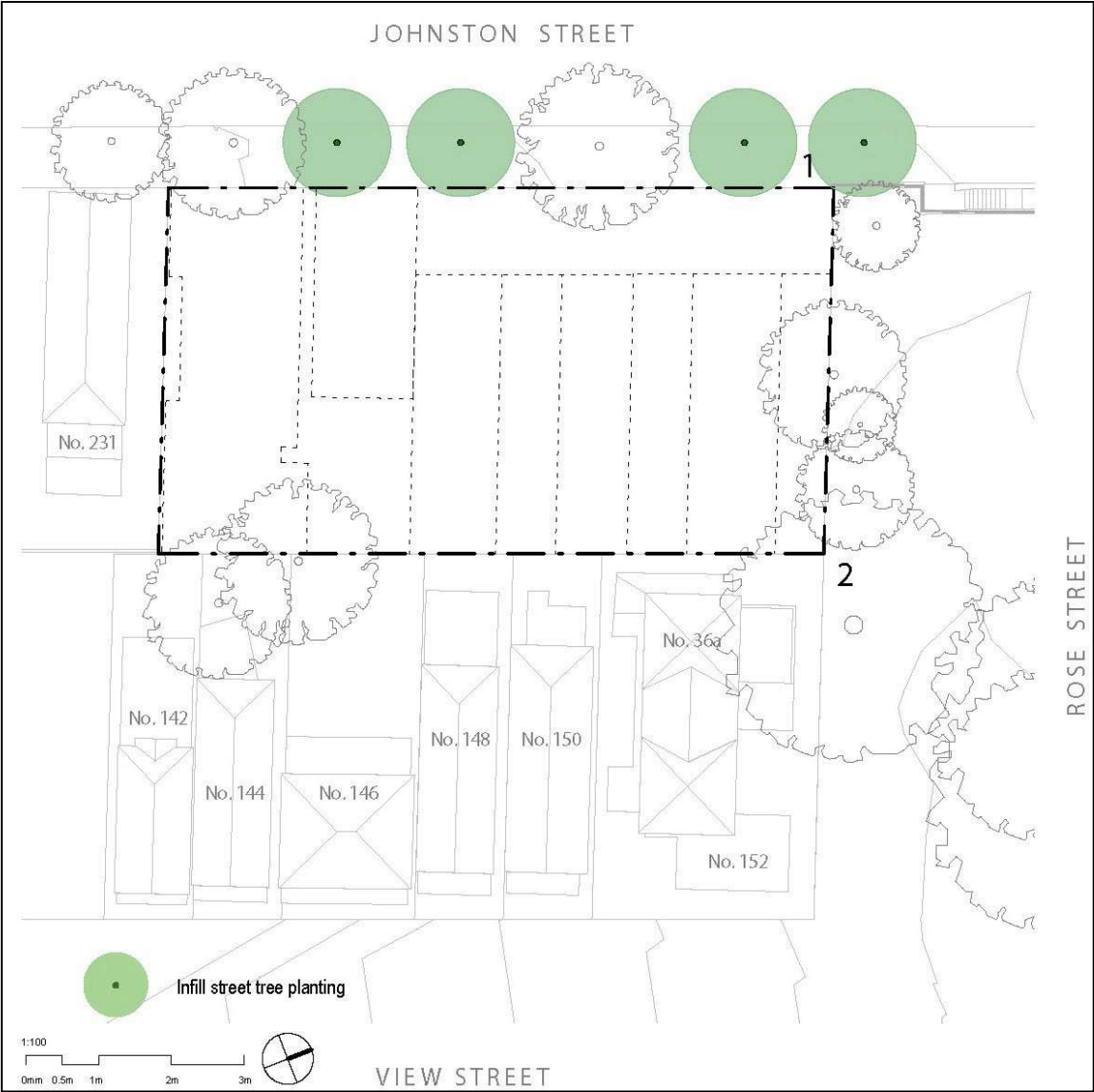


Figure G26: Street Tree Planting

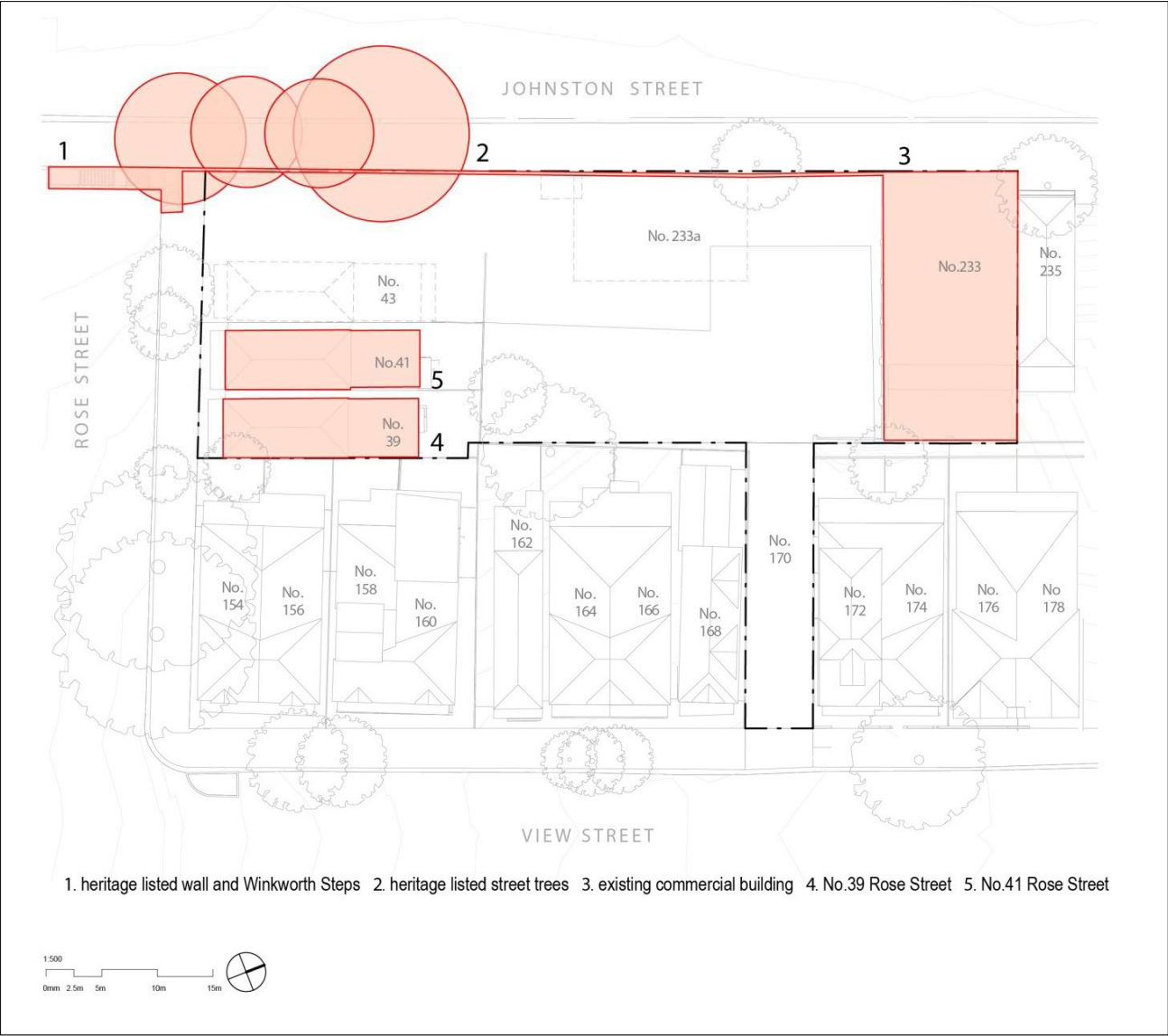


Figure G27: Items to be retained

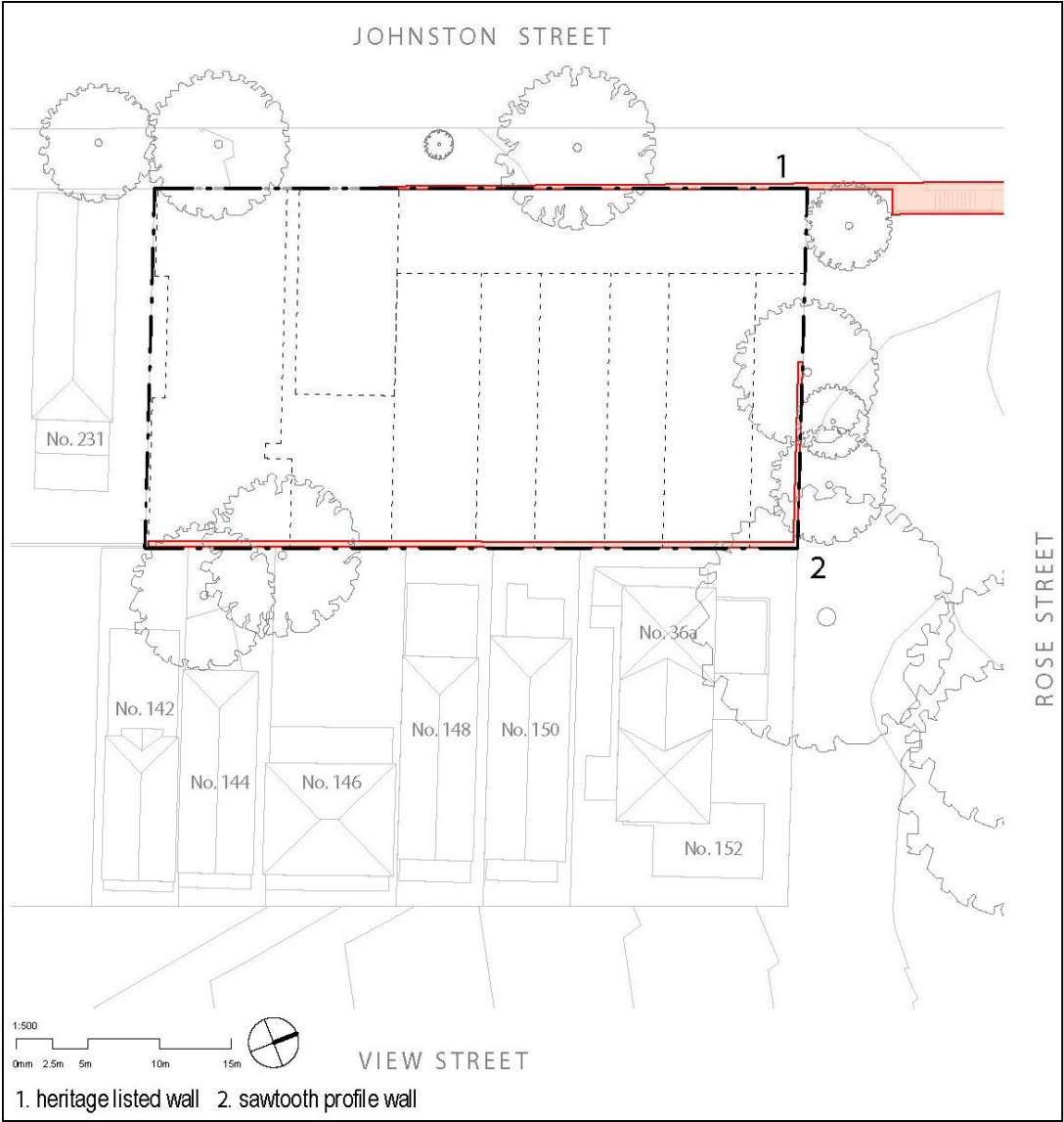


Figure G28: Items to be retained

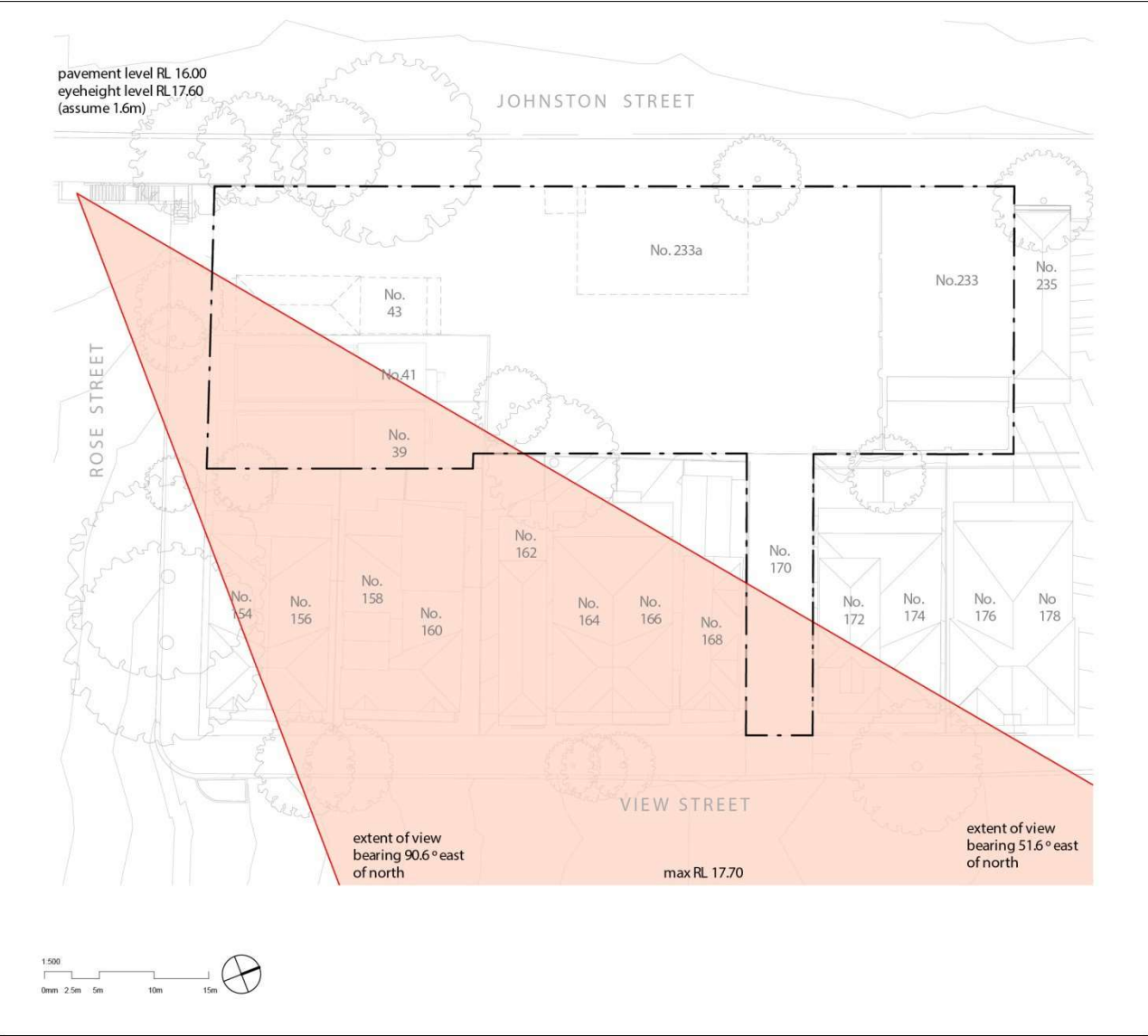


Figure G29: Views

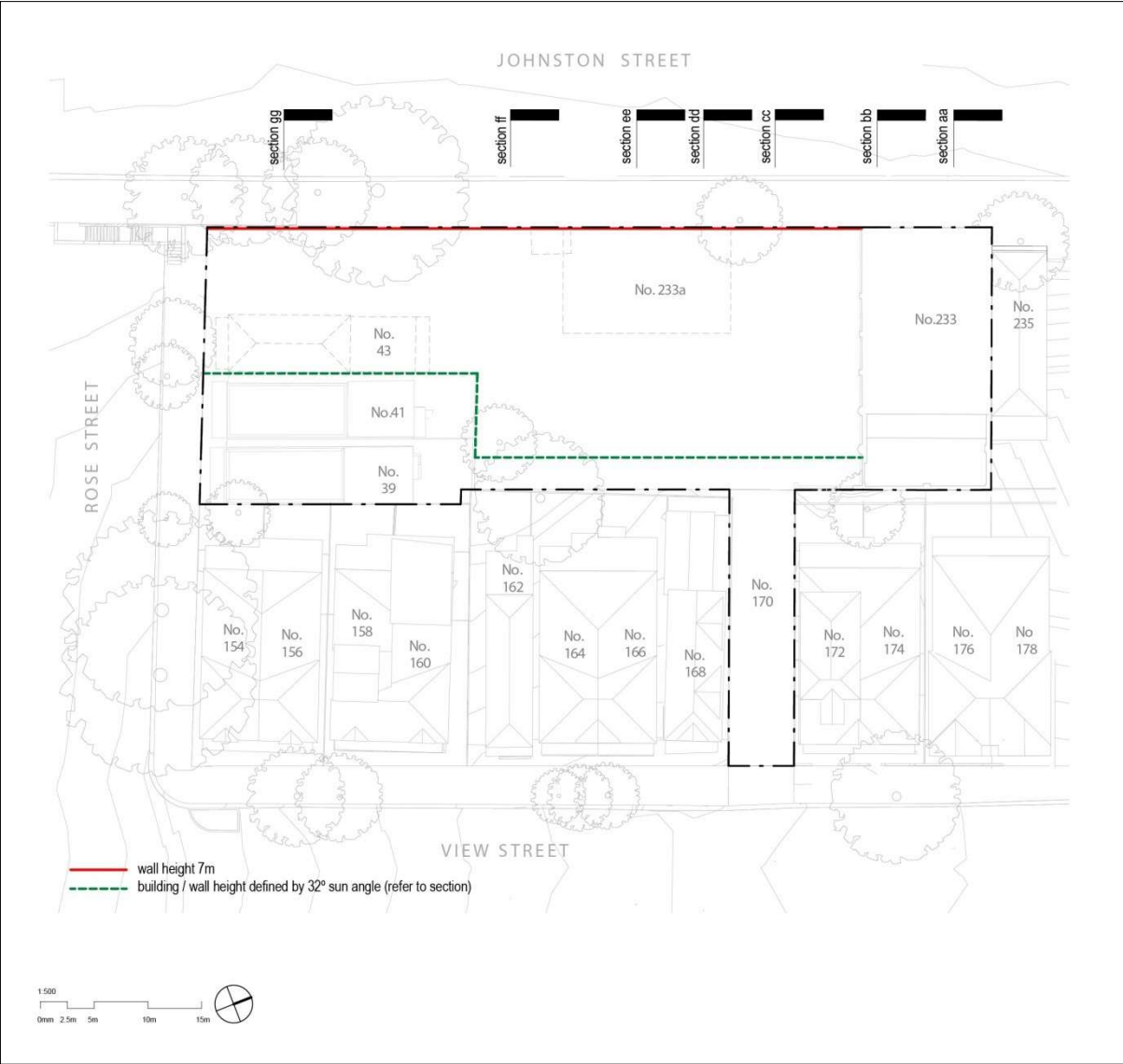


Figure G30: Building Heights and Massing Envelope

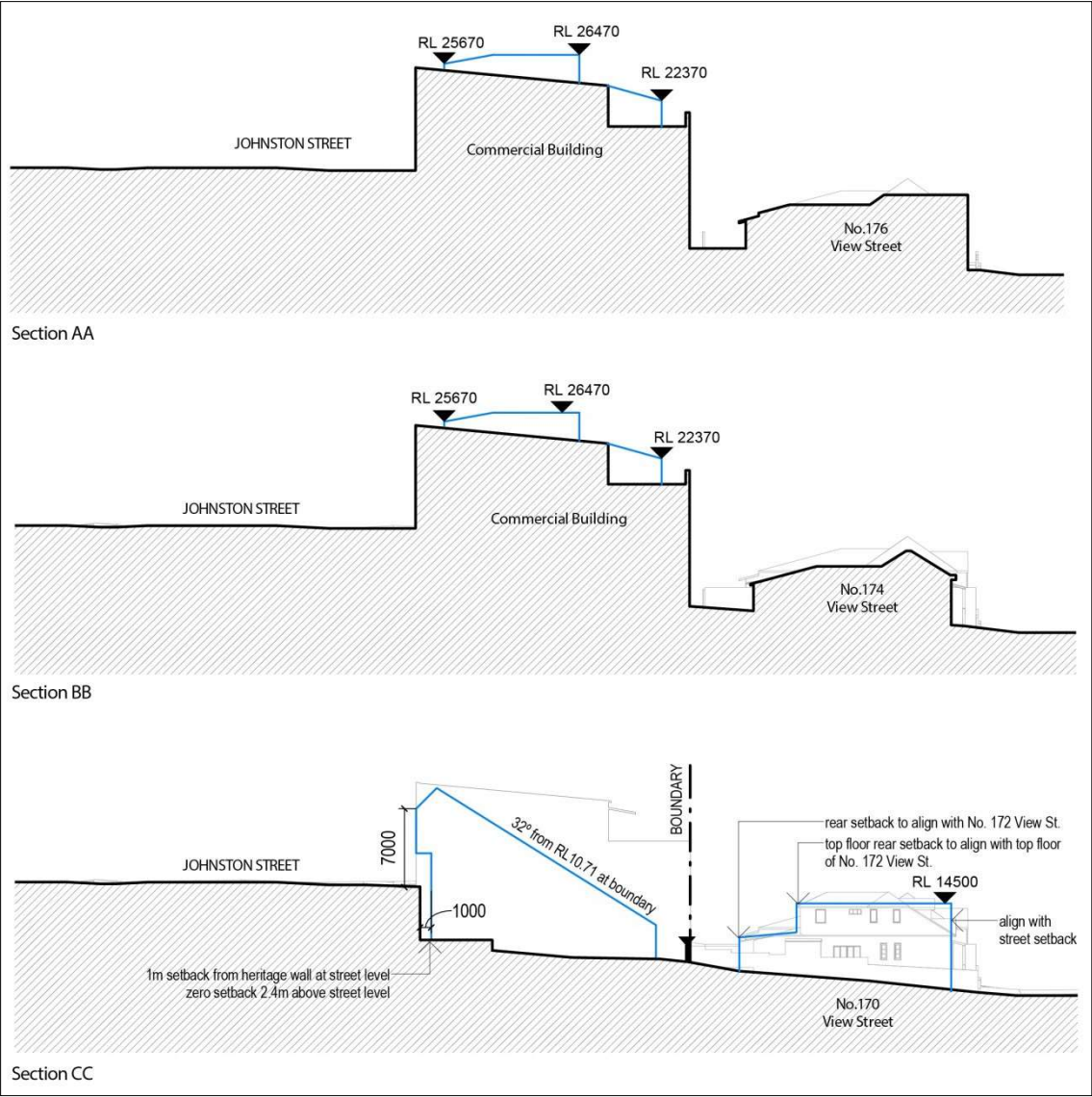


Figure G31: Building Heights and Massing Envelope – Section AA, Section BB & Section CC

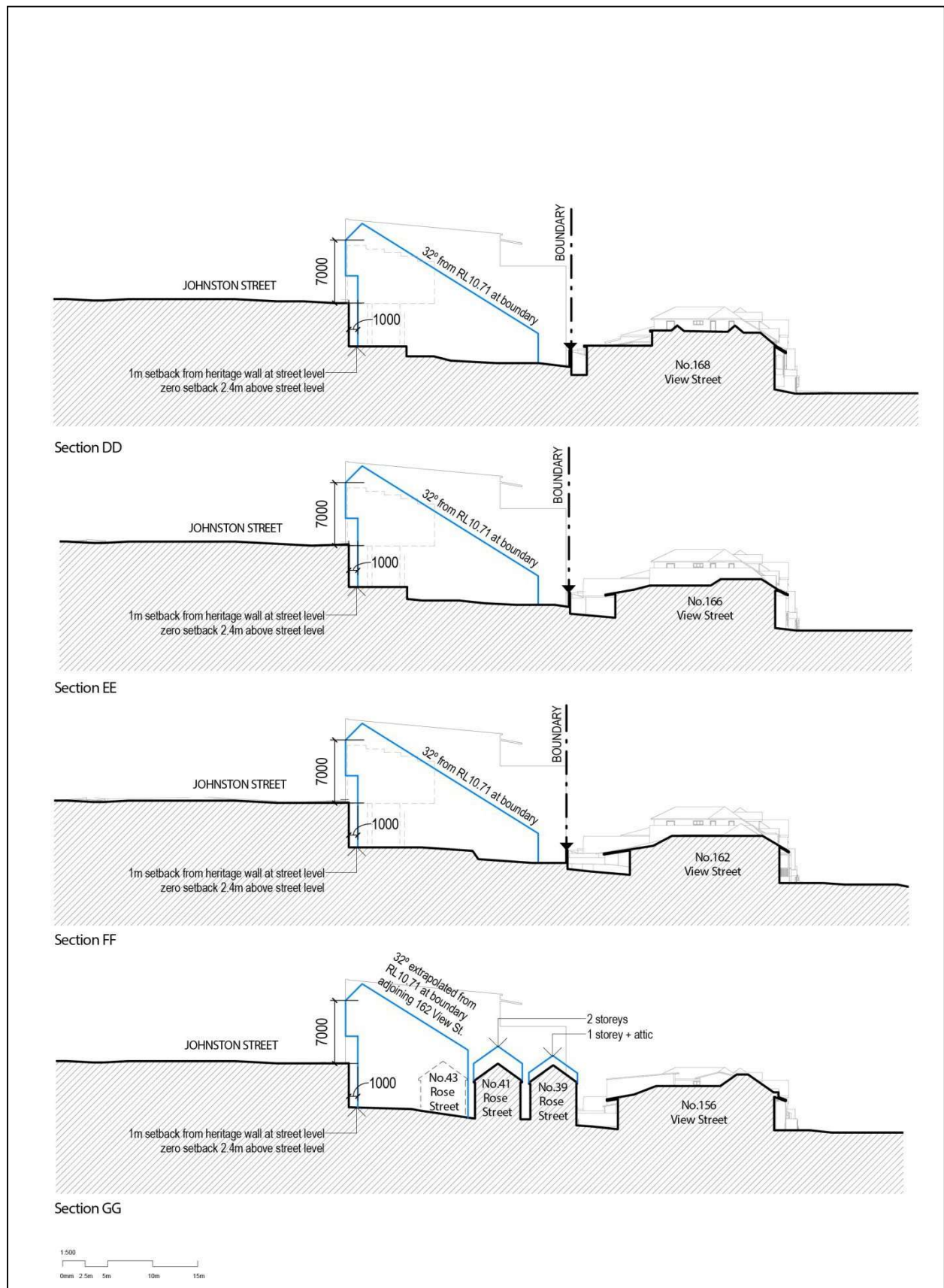


Figure G32: Building Height and Massing Envelope – Section DD, Section EE, Section FF and Section GG



Figure G33: Building Heights and massing envelope

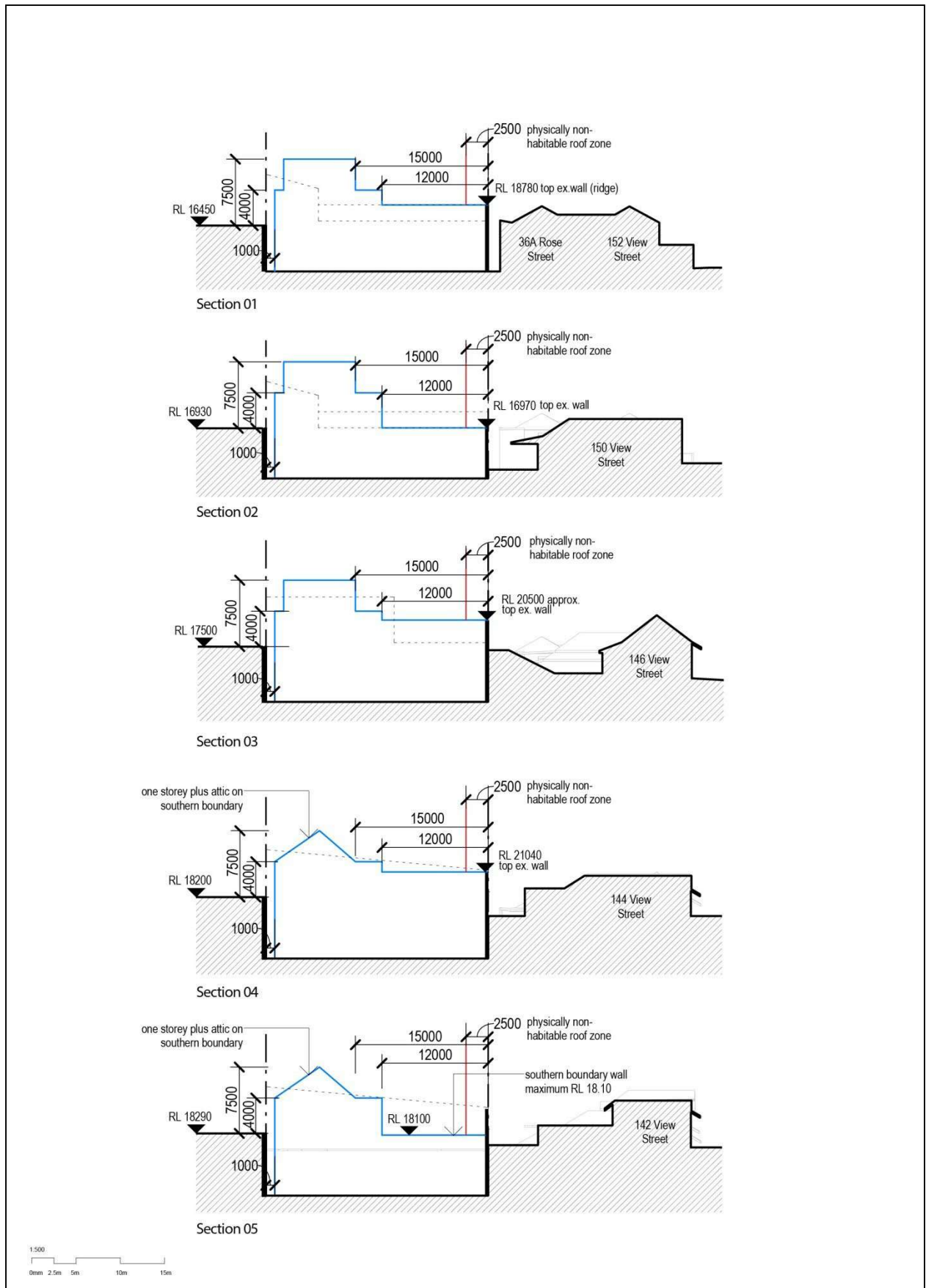


Figure G34: Building Heights and Massing Envelopes – Section 01, Section 02, Section 03, Section 04 and Section 05

SITE SPECIFIC CONTROLS

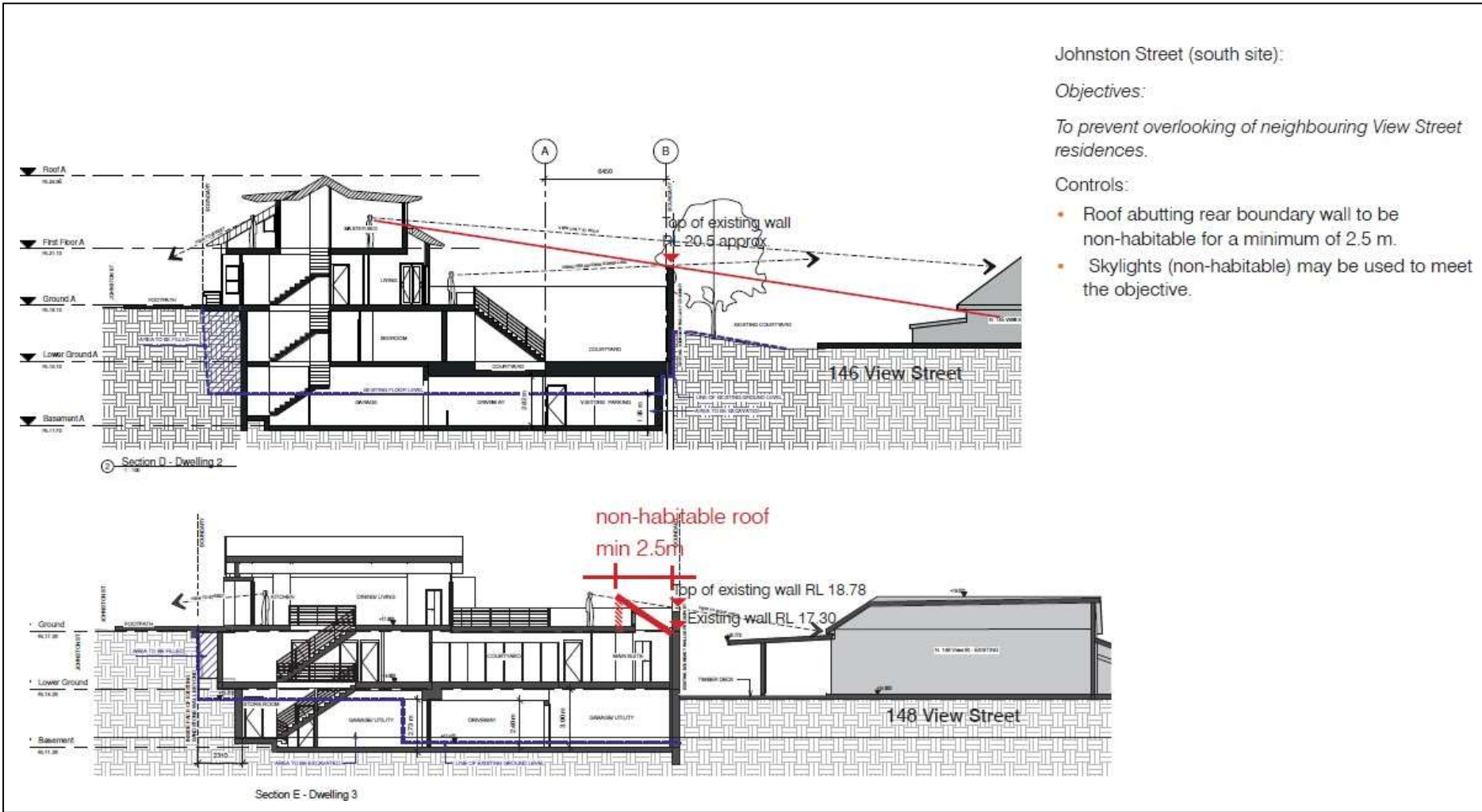


Figure G35: Upper level setbacks from the rear

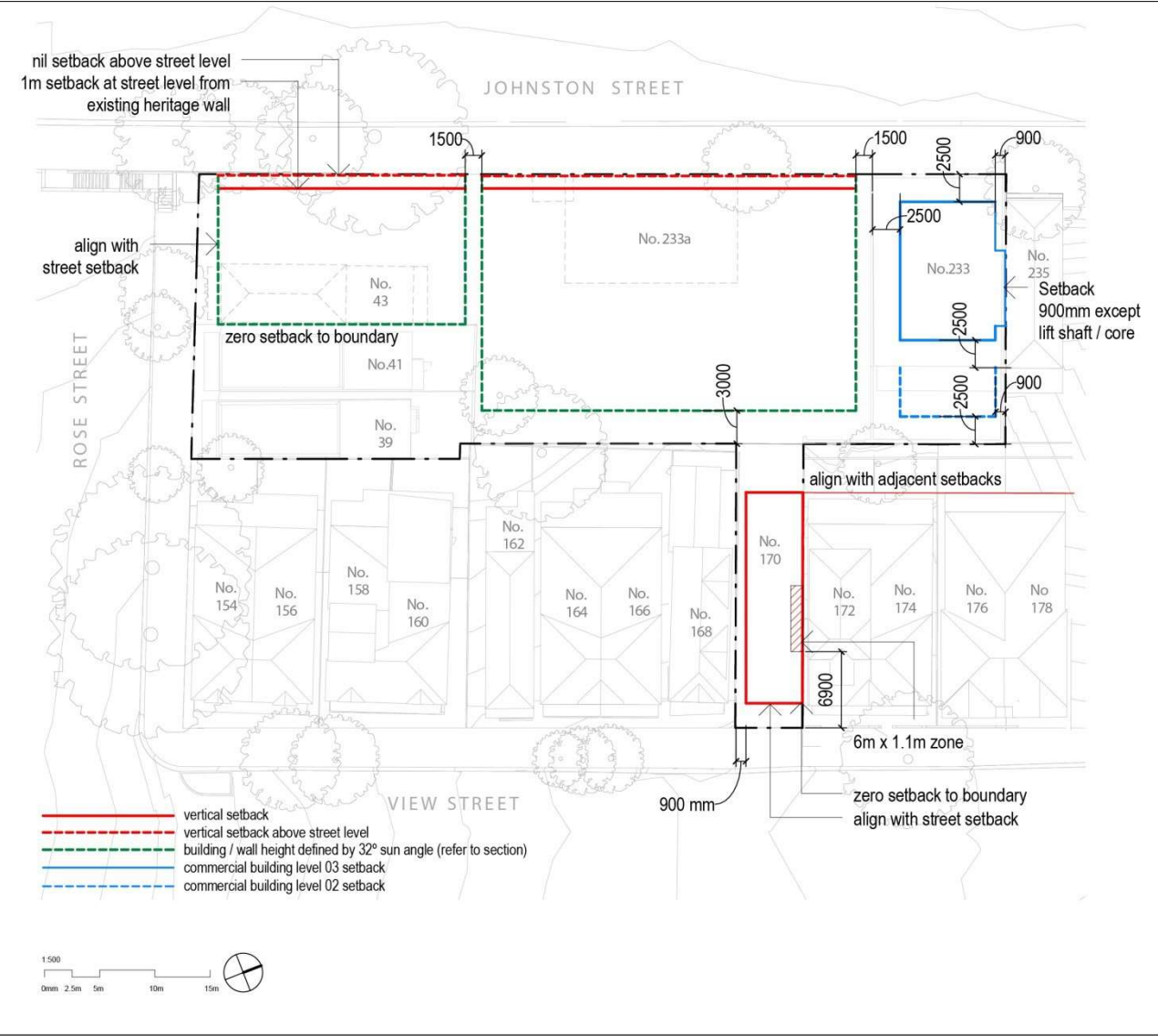


Figure G36: Building Setbacks

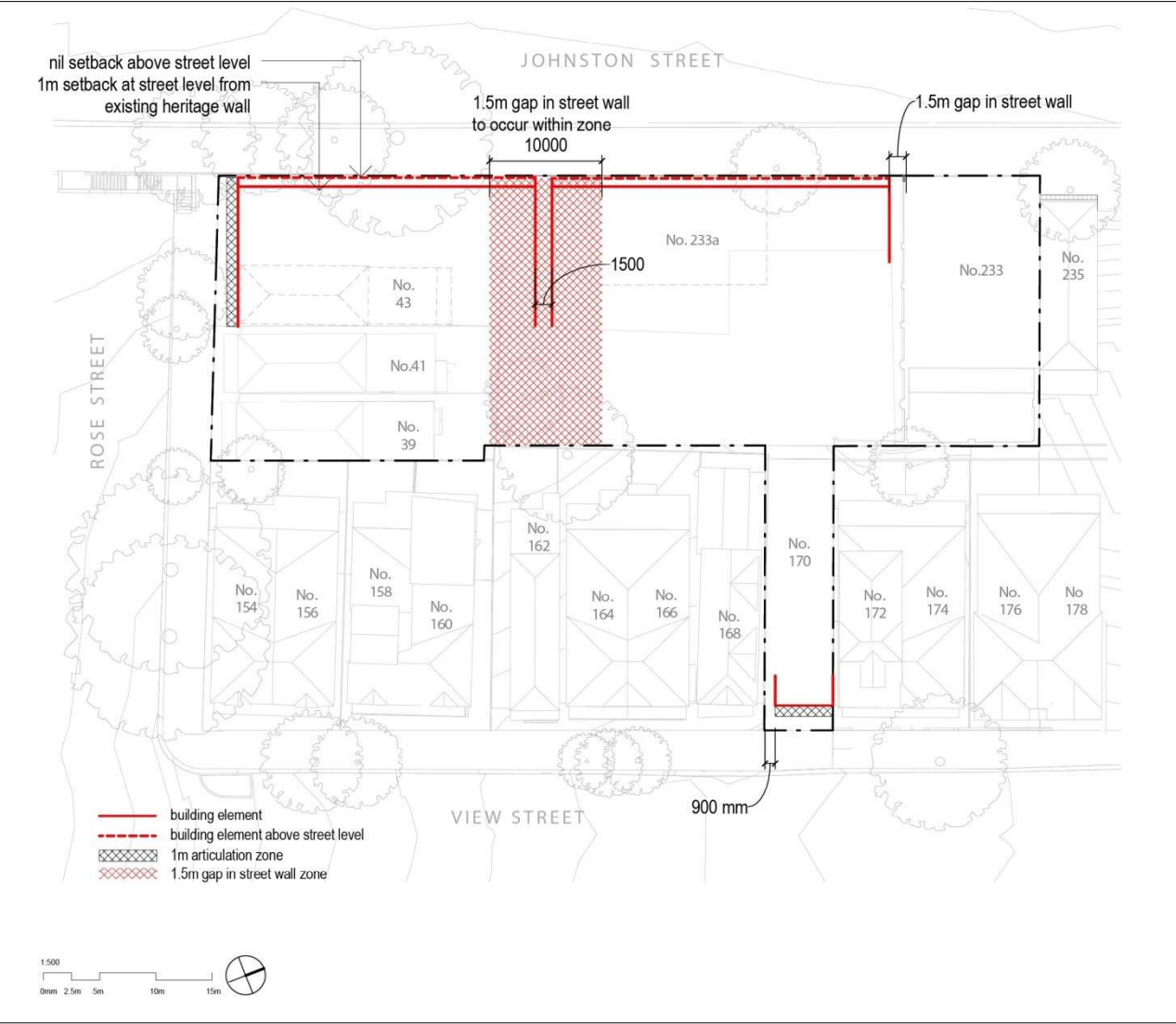


Figure G37: Building articulation

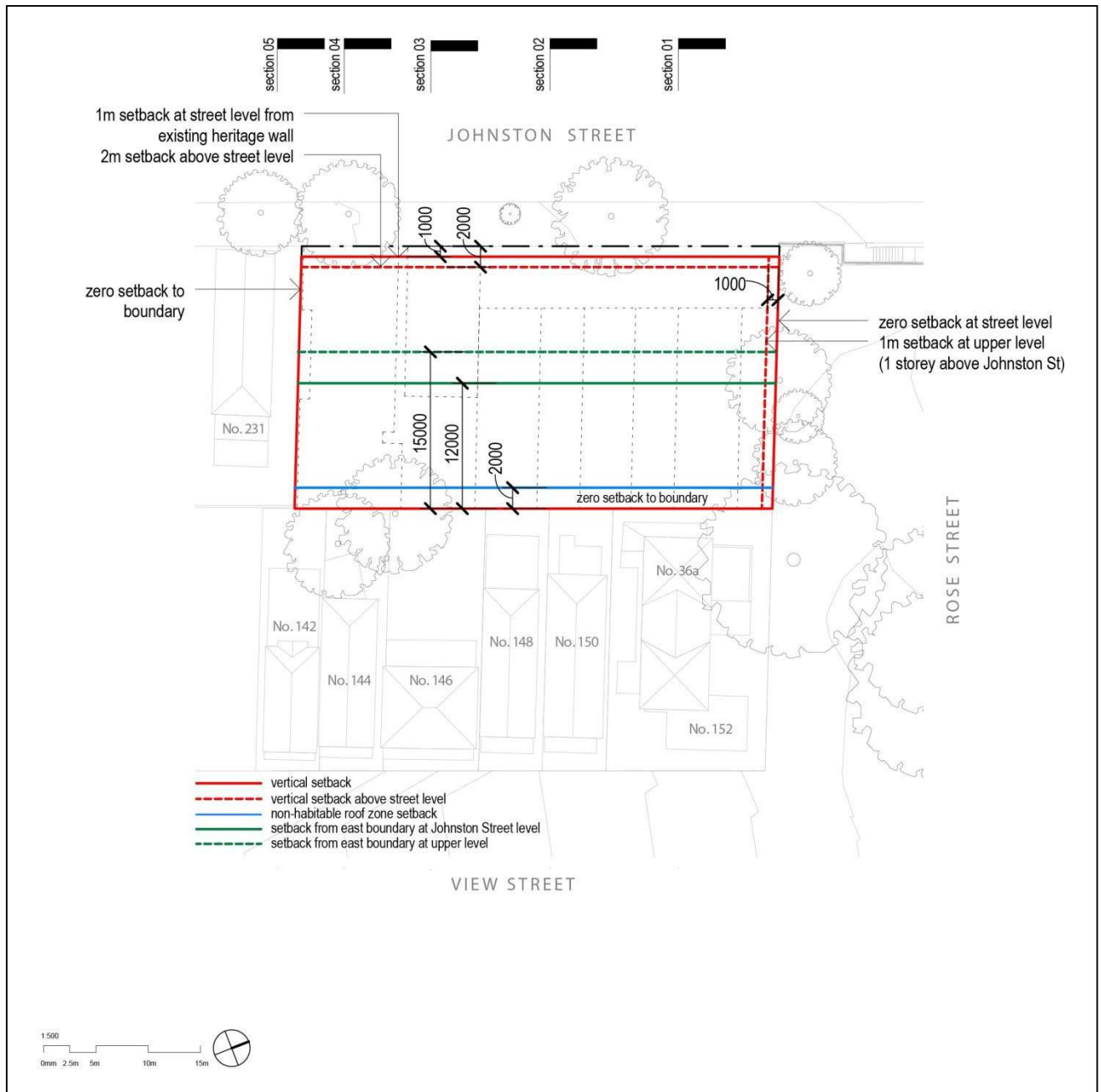


Figure G38: Building Setbacks

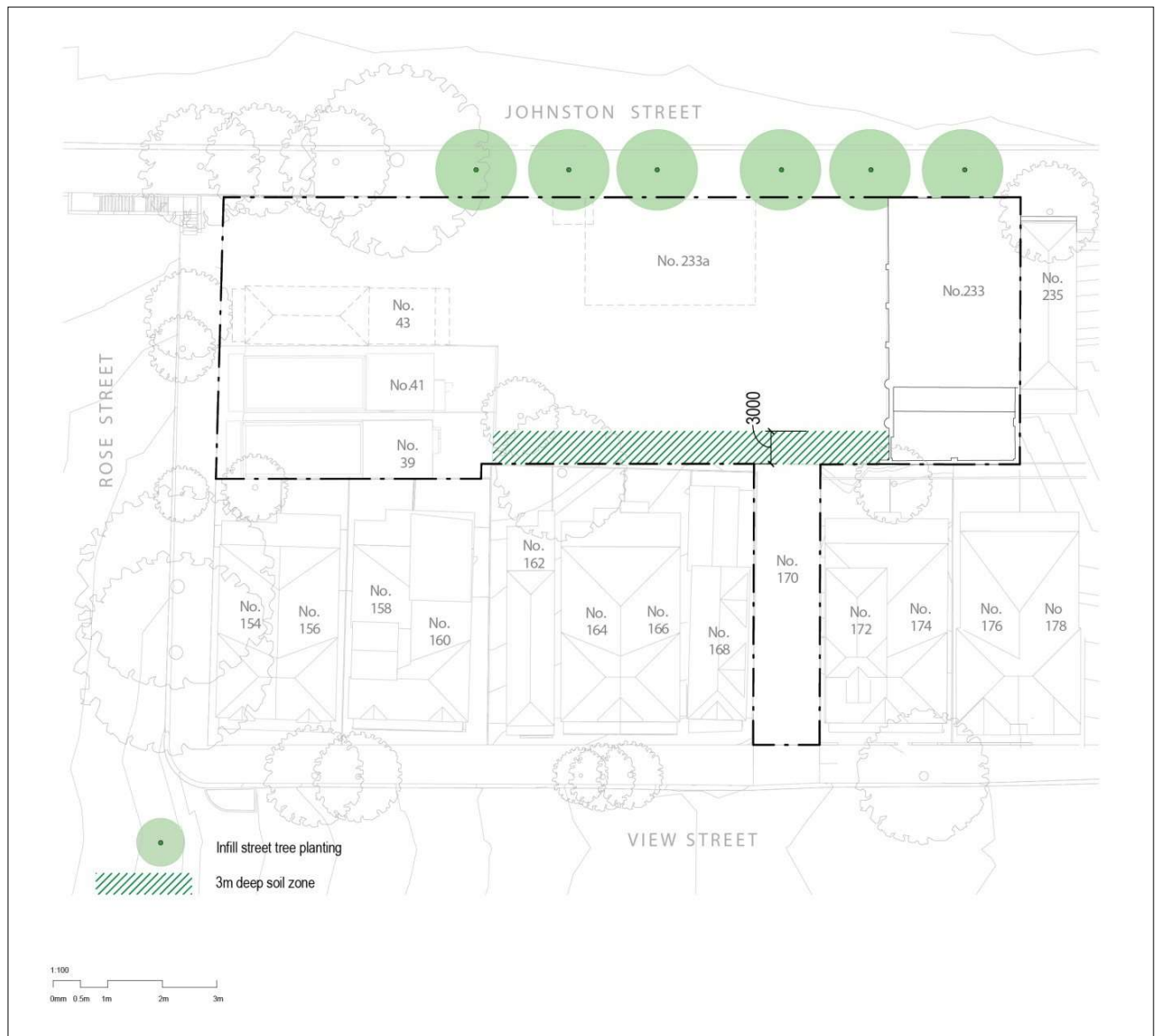


Figure G39: Deep soil landscape area

SECTION 8 – NO. 141 AND 159 ALLEN STREET, LEICHHARDT

Relationship to other plans

The following site specific controls apply to 141 and 159 Allen Street, Leichhardt.

Unless otherwise stated all development should be designed and constructed in accordance with the controls in this section and the provisions of this plan.

Please note that this development is subject to the provisions of State Environmental Planning Policy No. 65 Residential Flat Buildings and accompanying Residential Flat Design Code.

In the event of an inconsistency between this DCP and the Leichhardt DCP 2013 and any other DCP, policy or code, the controls in this section shall prevail in relation to development on the site.

Map Reference

Refer to Area 7 on the site specific map in Figure G1 Site Specific Areas.

G8.1 LAND TO WHICH THIS SECTION APPLIES

This part applies to the land shown as Area 7 in Figure G1 Site Specific Areas, known as 141 and 159 Allen Street, being lot 1 DP 632522 and Lot X DP 381373 respectively (herein referred to as 'the site').

No. 141 Allen Street has an area of approximately 7,143 sqm and 159 Allen Street has an area of 2,777 sqm; combined the site has an area of 9,920 sqm. The site is located on the southern side of Allen Street at its corner with Flood Street in the block bounded by Allen Street, Flood Street, Lyll Street and Darley Road.

G8.2 BACKGROUND

The subject site has a history of industrial use and was previously zoned IN2 Light Industrial. The site was the subject of a Planning Proposal that rezoned the site to R1 General Residential.

G8.3 OBJECTIVES

To provide objectives and controls to guide development of the site so as to ensure that the development is compatible with the surrounding area, meets the desired future character and needs of the community. In particular, these objectives and controls aim to achieve a development that:

- O1 Complements the existing fine grain residential sub-division pattern and the desired future character of the streetscape and surrounding area.
- O2 Achieves architectural and urban design excellence.
- O3 Maintains solar access and amenity to surrounding residences and public domain and the new development itself.
- O4 Reinforces and enhances the landscape character of the streetscape.
- O5 Improves amenity and overall appearance of Allen Street and Flood Street.

SITE SPECIFIC CONTROLS

- O6 Renews the public domain on the site boundaries to complement the desired future character.
- O7 Makes provision for 141 and 151 Allen Street, Leichhardt to be developed separately and independently of one another.

G8.4 DESIRED FUTURE CHARACTER STATEMENT

The site is within the West Leichhardt Distinctive Neighbourhood (Section C.2.2.3.2 of this Plan) in the Industrial/Business Area Sub Area (Section C.2.2.3.2 (a) of this Plan) and borders the North Residential Sub Area on the western boundary.

Objectives

- O1 The new character of the site shall:
 - a. respond to the topography of the site;
 - b. maintain the varied character of the area by ensuring new development is complementary in terms of its architectural style, built form and materials, and the varied streetscape derived from the prevailing small lot residential sub-division pattern of the surrounding streets;
 - c. promote building styles that enhance and contribute to the identity of the neighbourhood;
 - d. protect and enhance the residential amenity of dwellings on adjoining sites;
 - e. protect and enhance the heritage landscape setting of Allen Street;
 - f. maintain and enhance the streetscape of Flood Street including landscape elements;
 - g. encourage appropriate lighting and signage consistent with the character of the area;
 - h. provide active street frontages with individual residential address points for all ground floor units along Allen and Flood Streets; and
 - i. incorporate high quality materials and construction finishes.

G8.5 PUBLIC DOMAIN

Objectives

- O1 To contribute to a public domain that maximises safety and security.
- O2 To improve the amenity and overall appearance of Allen Street and Flood Street.
- O3 To reduce the visual impact of new development above the existing predominant street scale of one and two storey houses.
- O4 To protect and enhance the heritage landscape setting of Allen Street.
- O5 To ensure the retention of the heritage listed street trees of Brush Box on Allen Street.
- O6 To ensure new plantings and hard landscape elements complement the desired future character.

Controls

- C1 Soft and hard landscaping in the public domain is to be provided in accordance with Council's requirements including heritage matters.
- C2 A landscape plan is to be submitted with the Development Application that clearly identifies the palette of soft and hard landscape materials and planting.
- C3 Improved landscaping, mature street trees and paving is to be provided on Allen Street and Flood Street to improve pedestrian amenity and ameliorate conflict between pedestrians and vehicle movements.
- C4 Landscaping is to be designed to allow open views and clear passages for pedestrians to maximise safety and security in accordance with the principles of Crime Prevention Through Environmental Design.
- C5 The location and design of any required electricity infrastructure should be easily accessible and not adversely impact upon the streetscape.
- C6 Private open space on the ground floor, at the street frontage should enhance the streetscape through a 'borrowed landscape'.

G8.6 BUILT FORM AND DESIGN

G8.6.1 Building height and bulk

Objectives

- O1 To ensure future development responds to the existing and future scale and character of the streetscape and surrounding area.
- O2 To maintain solar access and amenity to surrounding residences, the public domain and development within the site.
- O3 To minimise overshadowing of surrounding properties and public domain.
- O4 To minimise visual impacts of building bulk on neighbouring and nearby properties.
- O5 To integrate new buildings with the scale and character of the streetscape and surrounding area through transition of building height reflected in the number of storeys.

Controls

- C1 Development shall not exceed the maximum height in storeys as shown in Figure G40.
- C2 The location of building forms are to be as shown in Figures G40 and G41.
- C3 All buildings are to be integrated with the scale and character of the surrounding neighbourhood.

G8.6.2 Building setbacks and articulation

Objectives

- O1 To ensure that buildings have adequate separation to minimise visual bulk and to ensure adequate amenity within the site.
- O2 To maintain solar access and amenity to surrounding residences, the public domain and development within the site.
- O3 To ensure that the building mass and articulation along Allen Street and Flood Street complements the articulation and character of the street, including breaks between buildings.
- O4 To minimise visual impacts of the buildings on neighbouring properties.

Controls

- C1 Building setbacks and separations shall be in accordance with the minimum setbacks and separation as outlined in Figure G41.
- C2 Breaks are to be provided in the street walls fronting Allen Street and Flood Street in accordance with Figure G41.

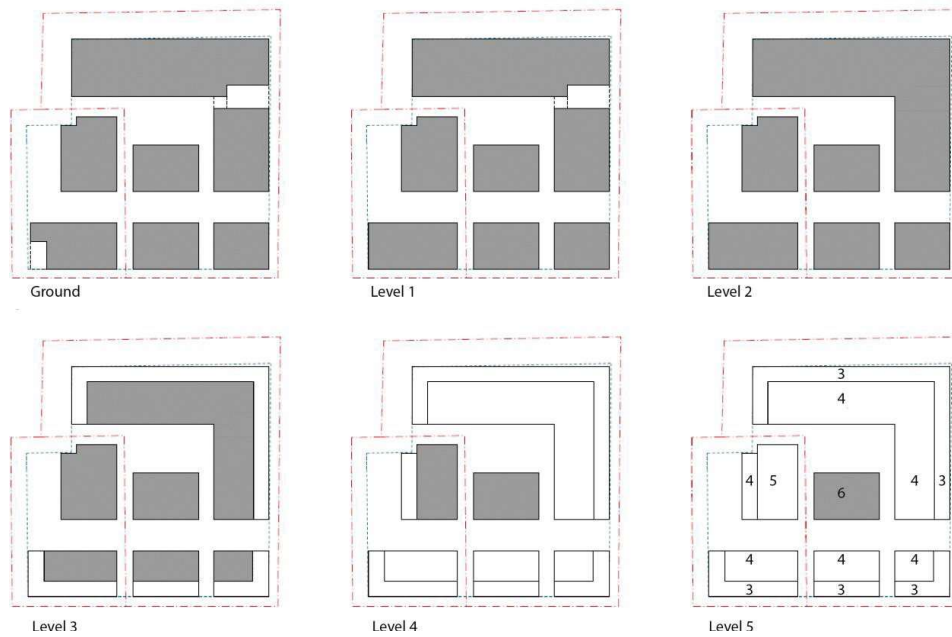


Figure G40: Maximum height in storeys

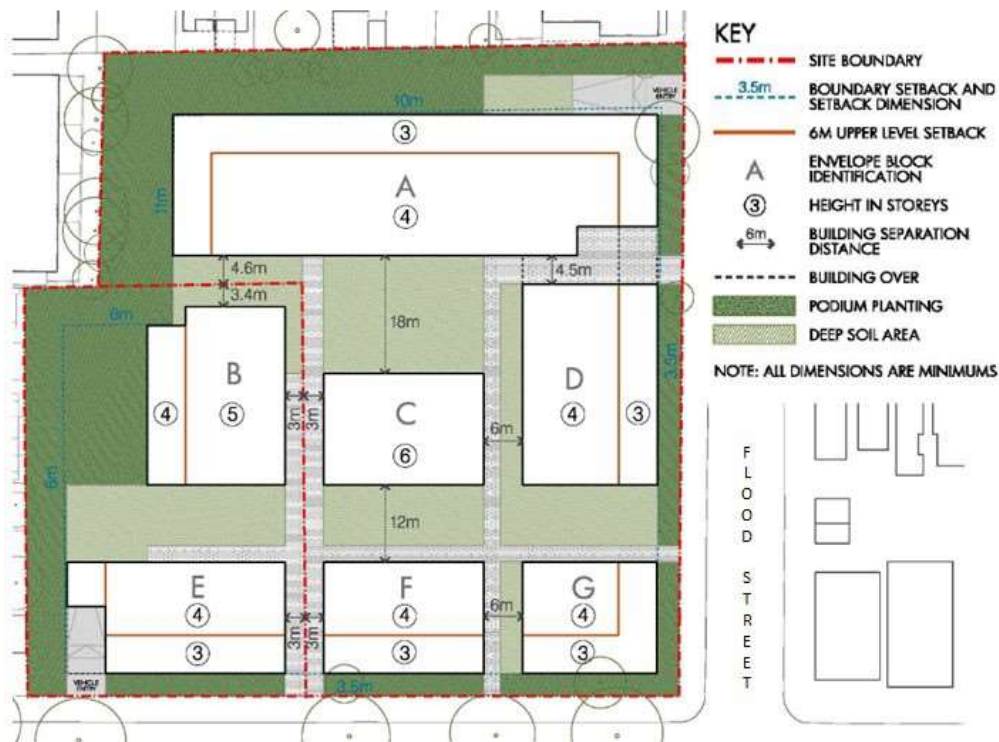


Figure G41: Building heights and setbacks

G8.6.3 Building separation

Objectives

- O1 To ensure that buildings have adequate separation to minimise visual bulk and to ensure adequate amenity within the site.
- O2 To ensure the development is equitable across land ownership.

- O3 To assist with development legibility and wayfinding.

Controls

- C1 Buildings should ensure appropriate separation from the adjoining properties as per Figure G41.
- C2 Building separation should generally meet SEPP 65, unless it can be demonstrated that privacy and amenity can be maintained with a reduced separation.
- C3 Buildings should be set back a minimum of three metres from internal lot boundaries.

G8.6.4 Building materials and finishes

Objectives

- O1 To ensure that buildings have a high quality appearance and have regard to the character of the surrounding area.
- O2 To select materials and construction techniques that contribute to maximising Greenstar rating.

Controls

- C1 Building and landscape materials are to be fit for purpose and reflect the Desired Future Character Statement, be appropriate for climatic conditions and be of high specification to ensure long term quality and sustainability of the development.
- C2 Materials to be used may include:
- a. Heavy materials for the base structure; for example, concrete, masonry or render;
 - b. Lightweight materials for the top of the building to allow flexibility in roof form; e.g. steel, aluminium or other metallic materials;
 - c. Screening elements, to provide enhanced privacy to the occupants of the development as well as to adjoining residential properties; and
 - d. Intended building materials are to be clearly identified on the Development Application documentation.
- C3 Any building with a wall greater than 20m in length is to include building material palette options, architectural fenestration elements and insets to articulate the façade and delineate visual massing of buildings.

G8.6.5 Design of building elements

Objectives

- O1 To ensure that fronts, backs and tops of buildings have a high quality appearance and have regard to the character of the surrounding area.

Controls

- C1 Buildings are to be designed in accordance with the Desired Future Character Statement.
- C2 The design of the buildings should be contemporary in nature but make reference to the form, scale and articulation of the local streetscapes.

SITE SPECIFIC CONTROLS

- C3 Buildings and landscape elements, including balconies, entries, rooflines and screening, are to contribute to the character of the streetscape, enhance opportunities for visual supervision of the public domain, reduce overlooking, enhance residential amenity and make a positive contribution to place identity.
- C4 The finished floor level of ground floor dwellings shall be a maximum of 1.0m above natural ground level at the street frontages.
- C5 Where the topography results in basement walls exceeding 0.5m above natural ground level, high quality planting or materials are to be used to minimise visual impacts.

G8.6.6 Disability access

Objectives

- O1 To ensure that access to the development and its surrounds is maximised for people of all abilities and needs.

Controls

- C1 The provisions of Part C1.10 Equity of Access and Mobility “Design for Equity of Access and Mobility” within this Plan apply.

G8.6.7 Activation of street frontages

Objectives

- O1 To activate the street by orientating ground floor living spaces to street frontages.

Controls

- C1 Ground floor living spaces shall be orientated to face the street frontages.
- C2 Ground floor dwellings should address the street frontages and provide direct access through front doors where possible.
- C3 Residential frontages maximise surveillance of the public domain and reinforce activation of the street environment.
- C4 Fencing along the Allen Street and Flood Street frontages is to implement a scale, materials, and visual permeability which will contribute to implementation of Crime Prevention Through Environmental Design principles and make a positive contribution to the scale, function and character of the streetscape.

G8.7 RESIDENTIAL AMENITY

G8.7.1 Solar access

Objectives

- O1 To optimise solar access to habitable rooms and private open space of new housing to improve amenity and energy efficiency.

Controls

- C1 Solar access to existing adjacent and nearby properties is to be maintained.
- C2 Buildings are to be located, designed and oriented to minimise overshadowing and loss of solar access to adjacent and nearby properties.
- C3 Development on either or both sites, whether carried out separately or together is to satisfy solar access requirements in accordance with in the Residential Flat Design Code (RFDC) (which forms part of the State Environmental Planning Policy No 65 – Design Quality of Residential Flat Buildings (SEPP 65)).
- C4 Living rooms and private open spaces for at least 70% of residential units should receive a minimum of 2 hours of direct sunlight between 9am and 3pm in mid-winter.

G8.7.2 Cross ventilation

Objectives

- O1 To ensure that dwellings have good access to fresh air and that energy efficiency is maximised.

Controls

- C1 All development is to comply with the provisions contained in C3.7 Environmental performance of this Plan.
- C2 60% of residential units should be naturally cross ventilated in accordance with the Residential Flat Design Code (RFDC) which forms part of State Environmental Planning Policy No 65 – Design Quality of Residential Flat Buildings (SEPP 65).

G8.7.3 Open Space

Objectives

- O1 To provide residents with areas of private open space of a size and shape that meets the users' requirements for relaxation and recreation.
- O2 To ensure there is clear delineations between communal and private open space within the development.
- O3 To meet the principles of Crime Prevention Through Environmental Design in the design of communal open spaces.

Controls

- C1 Open space areas are to be provided in accordance with Figure G42 and are to be no less than 40% of each of 141 Allen Street and 159 Allen Street.

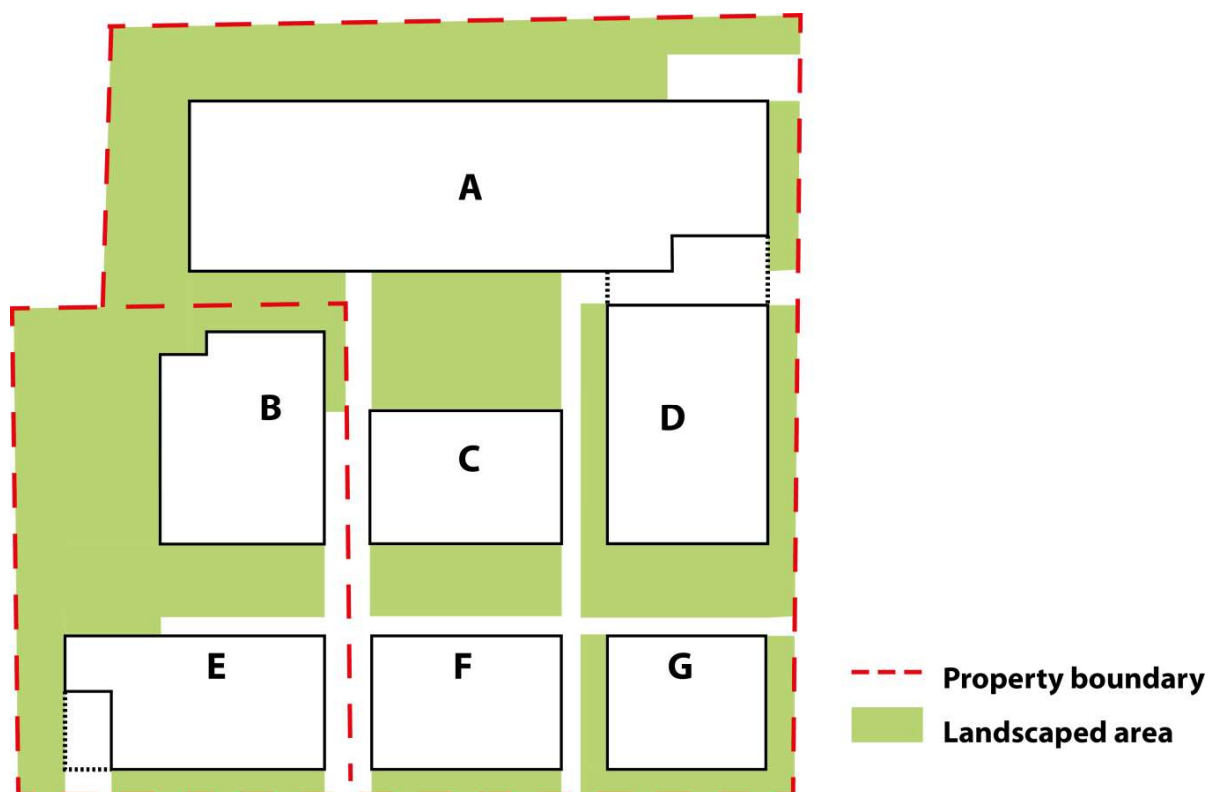


Figure G42: Landscaped area

- C2 Communal open space should maximise useable flat areas and be accessible to all residents.
- C3 Balconies and terraces should be:
 - a. designed as an integral part of the building's architecture;
 - b. a minimum width of 2.5 metres;
 - c. located off the main internal living area of the dwelling;
 - d. not encroach on the public domain; and
 - e. preferably face north.
- C4 Private open space should provide a buffer between dwellings and communal open space.

G8.7.4 Visual privacy

Objectives

- O1 To protect the visual privacy of adjoining dwellings by minimising direct overlooking of principal living areas and private open space.
- O2 To provide landscaping on built structures that maintains the privacy of the neighbouring properties.

Controls

- C1 All development is to comply with the visual privacy provisions contained in C3.11 Visual privacy of the *Leichhardt Development Control Plan 2013*.

G8.7.5 Deep soil and podium planting landscaped areas

Objectives

- O1 To improve the amenity of the existing residences and those of the new development by providing a deep soil landscaped area between properties.

Controls

- C1 Deep soil and podium planting areas are to be provided generally in accordance with Figure G43.

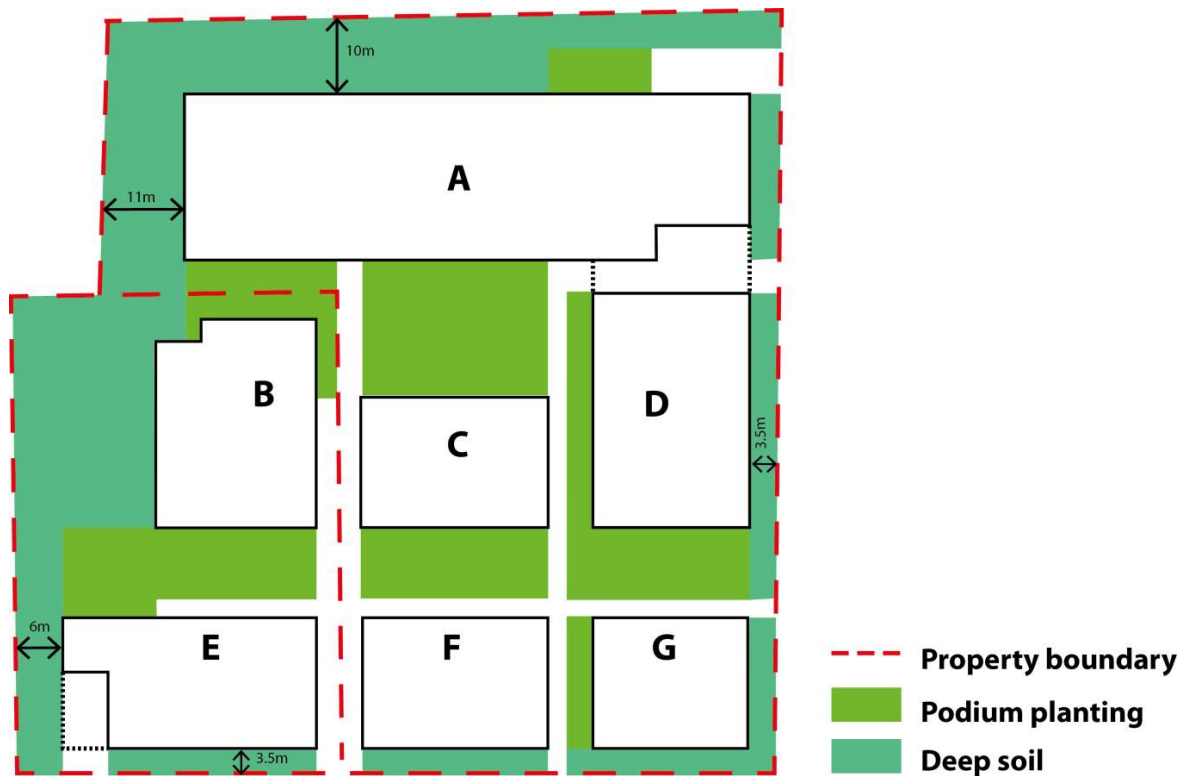


Figure G43: Deep soil and podium planting landscaped areas

- C2 A deep soil landscaped zone with a minimum width of 10m is to be provided along the northern boundary of the site, with the exception of the vehicle entry ramps identified in Figure G44, at which point the deep soil zone is to have a minimum width of 4m.
- C3 A deep soil landscaped zone with a minimum width of 6m is to be provided along the western boundary of the site with the exception of the vehicle entry ramps identified in Figure G44.
- C4 The deep soil landscaped zone is to be suitably landscaped, including the planting of suitable canopy trees that restrict overshadowing.
- C5 A landscape Plan of Management/Maintenance Plan is to be submitted with the Development Application.